

COMPLETE LEARNING SESSION

Governor CM State Council - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Governor CM State Council	
REFRESHED TEACHING NAVIGATION - BIGSCHEME FIRST	
01	CONSTITUTIONAL DESIGN: ONE STATE EXECUTIVE, TWO POLITICAL IDENTITIES Articles 153-167: one formal authority in the Governor while Assembly
02	APPOINTMENT, QUALIFICATIONS, OATH AND CONDITIONS Articles 153 and 154: 153 govern warrant appointment, citizenship
03	COMMON GOVERNOR, TERM, PLEASURE, RESIGNATION, TRANSFER AND CONTINUITY Articles 153 proviso and 156: permit a common Governor, five-year
04	ARTICLE 361 IMMUNITY AND ACCOUNTABILITY Official non-responsibility, suspension of criminal process, arrest
05	GOVERNOR'S POWERS: COMPLETE CLASSIFICATION The classification spans Articles 154, 161, 166, 168-176, 200, 202-213.
06	ARTICLE 163: AID, ADVICE AND THE NARROW FIELD OF DISCRETION Articles 163 and 166: aid and advice, a discretion came-out, a flexibility
07	CASE-LAW CONTROL: PROPOSITION, SIGNIFICANCE AND LIMITATION Shreehari Singh, Bhatnagar, Ramachandran Prasad, B.P. Singh, Nataraj
08	CHIEF MINISTER APPOINTMENT AND GOVERNMENT FORMATION Article 164: appointment operates through clear inquiry consent
09	FLOOR TEST: TRIGGER, PROCESS AND LIMITS Bhatnagar and Subhash Chandra: require objective material for intervention
10	DISMISSAL, DISSOLUTION AND CARETAKER GOVERNMENT Articles 164 and 174: operate with Assembly confidence
11	ARTICLE 356 RECOMMENDATION AND THE FEDERAL FIREWALL The report is a subsidiary report retained under Governor for relevance
12	ARTICLES 168, 171 AND 174-176: GOVERNOR INSIDE THE LEGISLATIVE PROCESS Articles 168, 171 and 174-176: place the Governor in legislative
13	ARTICLE 200: ASSENT, WITHHOLDING, RETURN AND RESERVATION The Governor may assent, withhold, return a non-Money Bill or
14	ARTICLE 201 AND THE PRESIDENT ON RESERVED STATE BILLS The President may assent or withhold and may direct return of a
15	ASSENT DOCTRINE AFTER THE TWO 2025 DECISIONS Tamil Nadu, used timelines and deemed assent on 16 facts, the later
16	ARTICLE 213 ORDINANCES: EMERGENCY BRIDGE, NOT PARALLEL LEGISLATURE Article 213: goes but the hand subject to legislative competence
17	ARTICLE 161 COMPARED WITH ARTICLE 72 The Governor acts for offences within State executive power, cannot
18	CHIEF MINISTER: CONSTITUTIONAL POSITION AND POWERS Articles 163, 164 and 167: make the CM head of the Council
19	ARTICLE 167: COMMUNICATE, FURNISH, COLLECTIVISE The CM communicates Council decisions and legislative proposals
20	STATE COUNCIL OF MINISTERS UNDER ARTICLES 163-164 Articles 163-164: govern appointment on CM advice, tenure, oath
21	MINISTRY SIZE, DEFECTOR BAR, RANKS AND TRIBAL WELFARE MINISTER Articles 164(3A), 164(3B) and the Article 164: proviso impose a
22	ARTICLE 165 ADVOCATE GENERAL AND ARTICLE 166 STATE BUSINESS Article 165: requires high Court judge qualifications for the State law
23	PRESIDENT AND GOVERNOR: SIMILARITIES THAT MUST NOT ERASE DIFFERENCES Articles 74 and 153: offer an explicit advice language, Articles 72 and
24	DUAL ROLE, FEDERAL FRICTION AND INSTITUTIONAL INCENTIVES Articles 153-156: create structural union linkage, while Article 154
25	SARKARIA, PUNCHHI AND NCWC REFORM AGENDA Sarkaria, NCWC and Punchhi recommendations address eminent
26	ANSWER WRITING: CLAIM, EVIDENCE, ANALYSIS, QUALIFICATION, VERDICT The recommended structure scales a clear thesis through Article, case

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 19 - Governor CM State Council - Complete Topic Package

Subject: Indian Polity | **Topic:** 19 | **GS-II + Prelims** | **Export date:** 2026-08-18 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or officially verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal/current control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: basic/Governor-and-CM.md -> advanced/19_Governor-CM-State-Council.md -> necessary cross-links in Polity 12-17, basic/Anti-Defection-Law.md, basic/State-Legislature.md and basic/High-Court.md -> official/current legal control. Qdrant was not used.
- [FACT] The authoritative Core owner supersedes any stale or less-qualified Advanced statement.
- [LIMIT] This is an institutional package. It deliberately avoids live lists of Governors, Chief Ministers, ministers, university Chancellors or office-specific controversies that may change.
- [CURRENT] Legal status is controlled to **28 August 2026, Asia/Kolkata**.
- [CURRENT] *State of Tamil Nadu v. Governor of Tamil Nadu*, 8 April 2025, **2025 INSC 481**, prescribed timelines and used deemed assent on its facts.
- [CURRENT] The later five-judge Article 143 advisory opinion, *In re: Assent, Withholding or Reservation of Bills by the Governor and the President of India*, 20 November 2025, **2025 INSC 1333**, held that Articles 200-201 do not permit court-created rigid timelines or automatic deemed assent. Prolonged, unexplained and indefinite inaction may still attract limited judicial review and a direction to act.
- [LIMIT] The November opinion is advisory and non-binding. It did **not** "overrule" the April judgment. This package uses it narrowly as the later controlling position on timelines, deemed assent and limited review.
- Official opinion: https://api.sci.gov.in/supremecourt/2025/39157/39157_2025_1_1501_66169_Judgement_20-Nov-2025.pdf.
- [FACT] *B.P. Singhal v. Union of India* (2010) holds that Article 156 pleasure is not arbitrary power:

removal cannot rest on capricious, unreasonable or mala fide grounds. Reasons need not routinely be disclosed, but the Union must justify removal if a prima facie case of arbitrariness is shown.

- Package target: independently answer-complete Foundation/Core, separate Optional Advanced, more than 20 text-native visuals, five routed/application Mains PYQs, all four routed Prelims demands, 36 original MCQs, 12 remedial MCQs and eight original solved Mains questions.

Roadmap

Stage	Coverage	Exam outcome
Constitutional skeleton	Articles 153-167	Locates every office and responsibility
Governor's office	Appointment, qualification, oath, conditions, tenure, pleasure and immunity	Solves factual close options
Governor's powers	Executive, legislative, financial, judicial and special roles	Builds complete 10/15-mark bodies
Advice and discretion	Article 163, <i>Shamsher Singh</i> and narrow exceptions	Prevents the "personal ruler" error
Political crises	Hung Assembly, floor test, dismissal, dissolution and caretaker government	Applies doctrine to facts
Legislative control	Articles 168, 171, 174-176, 200-201 and 213	Answers assent and ordinance questions
Chief Minister	Appointment, six-month rule, powers and Article 167	Explains the real State executive

Stage	Coverage	Exam outcome
State Council	Articles 163-164, responsibility, ranks, cap and defector bar	Solves ministry questions
Federal debate	Dual role, Article 356, Chancellor disputes and reform commissions	Produces balanced GS-II analysis
Workbook	PYQs, MCQs, remedials and solved Mains practice	Converts coverage into marks

Scope ownership and cross-links

- **Polity 12 - Federal System:** federalism as Basic Structure, strong-Union design and bargaining federalism.
- **Polity 13 - Centre-State and Inter-State Relations:** State-law control, Union directions and intergovernmental reform.
- **Polity 14 - Emergency Provisions:** full Article 356 procedure, duration, parliamentary control and *Bommai* consequences.
- **Polity 15 - President and Vice-President:** President-Governor comparison, Article 72-161 and Article 201.
- **Polity 16 - PM and Council of Ministers:** Union parallel, responsibility and caretaker convention.
- **Polity 17 - Parliament:** Union legislative procedure, ordinances and privileges comparison.
- **Anti-Defection Law:** Speaker adjudication, whip, 91st Amendment and *Subhash Desai's* party/faction holdings.
- **State Legislature:** Articles 168-212, Legislative Council composition and Bill procedure.
- **High Court:** institutional position protected by Article 200's mandatory-reservation proviso.
- [LIMIT] This package owns the Governor, Chief Minister and State Council of Ministers. Cross-links prevent repetition, but the Foundation/Core below is independently answer-complete.

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - CONSTITUTIONAL DESIGN: ONE STATE EXECUTIVE, TWO POLITICAL IDENTITIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A State executive joins a constitutional Governor with a Chief Minister-led responsible government.

Technical definition: Articles 153-167 vest formal authority in the Governor while Assembly confidence gives political authority to the Chief Minister and Council.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

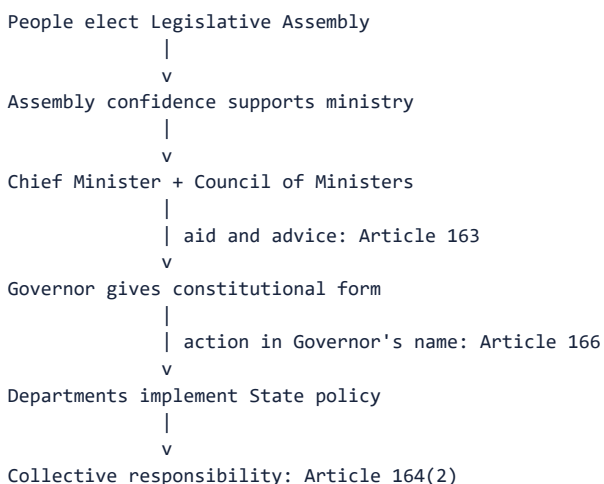
State executive design separates legal form from democratic command: the Governor constitutes office while the confidence-holding ministry governs.

MUST-WRITE KEYWORDS

- Governor
- Chief Minister
- Assembly confidence
- responsible government

How to use them: Frame the answer through Governor; define Chief Minister, connect Assembly confidence with responsible government to explain the mechanism, and close with the decisive comparison or qualification.

Visual 1 - Responsible State government



Caption: Democratic authority comes from Assembly confidence; formal executive action is expressed through the Governor.

- [FACT] Article 153 provides a Governor for each State and permits the same person to be Governor of two or more States.
- [FACT] Article 154 vests State executive power in the Governor, exercisable directly or through subordinate officers according to the Constitution.
- [FACT] Article 163 creates a Council of Ministers headed by the Chief Minister to aid and advise the Governor, except in constitutionally recognised discretionary fields.
- [FACT] Article 164(2) makes the Council collectively responsible to the Legislative Assembly.
- [ANALYSIS] The State therefore has a **dual executive**: Governor as formal constitutional head; CM-led ministry as responsible political executive.
- [LIMIT] "Nominal" does not mean irrelevant. The Governor performs constitutionally necessary acts, but ordinary policy authority belongs to the confidence-holding ministry.

Visual 2 - Articles 153-167 master map

Article	Subject	One-line recall
153	Governors	One for each State; one person may serve multiple States
154	Executive power	Vested in Governor; exercised constitutionally
155	Appointment	President appoints by warrant
156	Term	Five years, subject to President's pleasure
157	Qualification	Citizen; at least 35
158	Conditions	No legislature membership/office of profit; residence and protected emoluments
159	Oath	By High Court Chief Justice or available senior judge
160	Contingency	President may provide for unprovided contingencies
161	Clemency	State-field offences; narrower than Article 72
162	Executive extent	Coextensive broadly with State legislative competence, subject to constitutional limits
163	Aid/advice	CM-led Council; narrow discretion carve-out
164	Ministers	Appointment, pleasure, responsibility, oaths, cap and six-month rule
165	Advocate General	State's highest constitutional law officer
166	Business form	Action in Governor's name; authentication and business rules
167	CM duties	Communicate, furnish information and collectivise decisions

Memory line: 153-162 build the Governor; 163-167 build responsible State government.

CLOSING RECALL FLOW - CONSTITUTIONAL DESIGN: ONE STATE EXECUTIVE, TWO POLITICAL IDENTITIES

START / CONCEPT: Constitutional design: one State executive, two political identities

|

v

EXACT TERMS: Governor • Chief Minister • Assembly confidence • responsible government

|

v

MECHANISM / ARGUMENT: Electors choose the Assembly, its confidence sustains the Council, and gubernatorial acts give constitutional form.

|

v

CONSEQUENCE / CONTRAST: The design combines continuity and responsible government but creates tension through Union appointment of the State head.

|

v

UPSC TRAP / ANSWER-USE: Do not treat formal vesting in the Governor as personal executive government.

|

v

ANSWER-GRABBING FORMULATION: State executive design separates legal form from democratic command: the Governor constitutes office while the confidence-holding ministry governs.

SESSION 2 - APPOINTMENT, QUALIFICATIONS, OATH AND CONDITIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The President appoints a Governor who must satisfy limited constitutional qualifications and office conditions.

Technical definition: Articles 155 and 157-159 govern warrant appointment, citizenship, age 35, incompatible offices, emoluments and oath.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Appointment, eligibility and conditions are separate legal questions; Sarkaria conventions are not constitutional qualifications.

MUST-WRITE KEYWORDS

- Article 155
- Article 157
- age 35
- Article 158
- Article 159

How to use them: Frame the answer through Article 155; define Article 157, connect age 35 with Article 158 to explain the mechanism, and use Article 159 for the decisive comparison or qualification.

Visual 3 - Entry into office

Article 155 appointment by President

|

v

Article 157 eligibility

- citizen of India
- completed 35 years

|

v

Article 158 conditions checked

- no MP/State-legislature seat
- no other office of profit

|

v

Article 159 oath before HC Chief Justice

|

v

Assumes constitutional office

- [FACT] The Governor is **appointed**, not elected. Article 155 uses appointment by the President by warrant under his hand and seal.
- [FACT] Article 157 requires citizenship of India and completion of **35 years**.
- [FACT] Article 158 bars membership of either House of Parliament or a State legislature. If a sitting member assumes office as Governor, the seat is deemed vacated.
- [FACT] The Governor cannot hold another office of profit.
- [FACT] The Governor is entitled to official residence without rent and to emoluments, allowances and privileges determined by parliamentary law; emoluments and allowances cannot be diminished during the term.
- [FACT] Where one person is Governor of two or more States, emoluments and allowances are allocated among those States in the proportion determined by the President.
- [FACT] Under Article 159, the oath is administered by the Chief Justice of the High Court exercising jurisdiction, or in that judge's absence by the senior-most available judge of that Court.
- [LIMIT] "Outsider" status and consultation with the Chief Minister are reform conventions/recommendations, not constitutional qualifications.

Visual 4 - Appointment: text versus desirable convention

Layer	What controls	Legal status
Constitution	President appoints; citizen; 35; conditions in Article 158	Binding law
Parliamentary design	Emoluments and privileges under law	Binding where enacted
Sarkaria ideal	Eminent outsider; detached from local politics; consult CM	Recommendation
Political practice	Choice may reflect Union priorities	Practice, not constitutional rule

UPSC trap: There is no constitutional election, electoral college, State-legislature confirmation or minimum educational qualification for Governor.

CLOSING RECALL FLOW - APPOINTMENT, QUALIFICATIONS, OATH AND CONDITIONS

START / CONCEPT: Appointment, qualifications, oath and conditions

|

v

EXACT TERMS: Article 155 · Article 157 · age 35 · Article 158 · Article 159

|

v

MECHANISM / ARGUMENT: Presidential warrant and eligibility lead to oath before the High Court Chief Justice or available senior judge.

|

v

CONSEQUENCE / CONTRAST: Minimal legal qualifications preserve flexibility but intensify debate over neutral selection conventions.

|

v

UPSC TRAP / ANSWER-USE: Outsider status, CM consultation and eminence are recommendations or conventions, not binding qualifications.

|

v

ANSWER-GRABBING FORMULATION: Appointment, eligibility and conditions are separate legal questions; Sarkaria conventions are not constitutional qualifications.

SESSION 3 - COMMON GOVERNOR, TERM, PLEASURE, RESIGNATION, TRANSFER AND CONTINUITY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: One person may govern multiple States, and each office continues subject to presidential pleasure.

Technical definition: Articles 153 proviso and 156 permit a common Governor, five-year outer term, earlier removal, resignation and holdover until a successor enters office.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

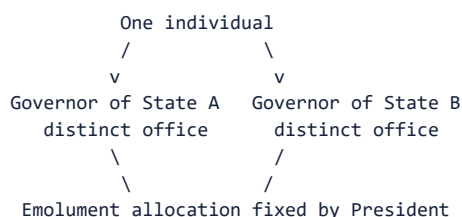
The five-year term is an outer period subject to pleasure, not a guaranteed lease in one State.

MUST-WRITE KEYWORDS

- Article 153
- Article 156
- President's pleasure
- common Governor
- B.P. Singhal

How to use them: Frame the answer through Article 153; define Article 156, connect President's pleasure with common Governor to explain the mechanism, and use B.P. Singhal for the decisive comparison or qualification.

Visual 5 - One person, multiple State offices



- [FACT] The proviso to Article 153, inserted through the Seventh Amendment framework, allows one person to be appointed Governor of two or more States.

- [ANALYSIS] A common incumbent does not merge the States or their Councils of Ministers. Each constitutional relationship remains State-specific.

Visual 6 - Tenure is a floorless outer term, not a guaranteed lease

Appointment

- |
- +---- Article 156(1): President's pleasure can end office
- |
- +---- Article 156(2): resignation addressed to President
- |
- +---- Article 156(3): five-year term, subject to pleasure
- |
- +---- Continuity: remains until successor enters office

- [FACT] Article 156 states a five-year term **subject to the pleasure of the President**.
- [FACT] The Governor may resign by writing addressed to the President.
- [FACT] The Governor continues until the successor enters office, avoiding an interregnum.
- [FACT] The constitutional scheme permits transfer and reappointment; it does not create an enforceable right to remain in one State for five years.
- [ANALYSIS] Pleasure creates structural dependence because the appointing Union executive can bring the tenure to an end.
- [LIMIT] Pleasure is not the same as a constitutional impeachment process, and the text specifies no State-legislature removal vote.
- [FACT] *B.P. Singhal v. Union of India* (2010) preserves presidential pleasure but subjects removal to

constitutional non-arbitrariness. The Governor has no enforceable five-year lease, yet cannot lawfully be removed for capricious, unreasonable or mala fide reasons.

Visual 7 - Tenure distinctions

Proposition	Correct?	Why
"Governor has a guaranteed five-year term"	No	Five years is subject to pleasure
"Governor must leave exactly after five years even if successor is absent"	No	Continuity clause applies
"Governor may be transferred"	Yes	No State-specific tenure guarantee
"Governor may be reappointed"	Yes	Constitution does not bar it
"State Assembly can impeach Governor under existing text"	No	No such constitutional process

CLOSING RECALL FLOW - COMMON GOVERNOR, TERM, PLEASURE, RESIGNATION, TRANSFER AND CONTINUITY

START / CONCEPT: Common Governor, term, pleasure, resignation, transfer and continuity

|
v

EXACT TERMS: Article 153 · Article 156 · President's pleasure · common Governor · B.P. Singhal

|
v

MECHANISM / ARGUMENT: Appointment continues until resignation, removal, transfer or successor entry; B.P. Singhal subjects early removal to non-arbitrariness.

|
v

CONSEQUENCE / CONTRAST: Continuity avoids vacancy, while pleasure tenure creates structural Union dependence.

|
v

UPSC TRAP / ANSWER-USE: No State legislature can impeach a Governor under the current Constitution, but pleasure is not arbitrary power.

|
v

ANSWER-GRABBING FORMULATION: The five-year term is an outer period subject to pleasure, not a guaranteed lease in one State.

SESSION 4 - ARTICLE 361 IMMUNITY AND ACCOUNTABILITY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 361 gives temporary personal protections to a serving Governor without immunising unlawful government action.

Technical definition: Official non-answerability, suspension of criminal process, arrest immunity and notice for personal civil proceedings coexist with judicial review through proper respondents.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Constitutional immunity protects office performance, not a pocket of unreviewable State power.

MUST-WRITE KEYWORDS

- Article 361
- criminal proceedings
- arrest immunity
- civil notice
- judicial review

How to use them: Frame the answer through Article 361; define criminal proceedings, connect arrest immunity with civil notice to explain the mechanism, and use judicial review for the decisive comparison or qualification.

Visual 8 - Immunity protects the office-holder, not unlawful government action

PERSONAL IMMUNITY DURING TERM

- no criminal proceeding instituted or continued
- no arrest or imprisonment process
- personal civil claim only after two months' notice
- official non-answerability to court

DOES NOT CREATE

- immunity for the State government's action
- freedom from judicial review of unconstitutional material
- legislative speech privilege under Article 194
- [FACT] Article 361 makes the Governor not answerable to any court for the exercise and performance of official powers and duties.
- [FACT] No criminal proceeding may be instituted or continued against a Governor during the term.
- [FACT] No process for arrest or imprisonment may issue during the term.
- [FACT] A civil proceeding concerning a personal act may be instituted during the term only after two months' written notice containing the required particulars.
- [LIMIT] The immunity of the person does not immunise the underlying governmental action, relevant material or constitutional validity from review through proceedings against the State or Union as legally appropriate.
- [FACT] Article 194 protects speech/votes of members of a State legislature. The Governor is a component of the legislature under Article 168 but **not a member** of either House.

Visual 9 - Routed immunity discriminators

Demand	Correct doctrinal distinction
2018 Prelims Q41	No criminal proceedings during term; emoluments/allowances cannot be diminished during term
2025 Prelims Q59	Article 361 office immunity is not Article 194 legislative speech immunity
Common trap	"Part of legislature" under Article 168 does not make Governor a legislator

CLOSING RECALL FLOW - ARTICLE 361 IMMUNITY AND ACCOUNTABILITY

START / CONCEPT: Article 361 immunity and accountability

↓

EXACT TERMS: Article 361 · criminal proceedings · arrest immunity · civil notice · judicial review

↓

MECHANISM / ARGUMENT: Proceedings against the office-holder pause or require notice, while courts may still test the underlying action and material.

↓

CONSEQUENCE / CONTRAST: The rule protects institutional functioning without extinguishing later liability or constitutional remedies.

↓

UPSC TRAP / ANSWER-USE: Being part of the legislature under Article 168 does not give the Governor Article 194 member speech privilege.

↓

ANSWER-GRABBING FORMULATION: Constitutional immunity protects office performance, not a pocket of unreviewable State power.

SESSION 5 - GOVERNOR'S POWERS: COMPLETE CLASSIFICATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Governor powers fall into executive, legislative, financial, clemency and exceptional constitutional or statutory categories.

Technical definition: The classification spans Articles 154, 161, 166, 168-176, 200, 202-213, 233, 243-I, 243K, 316 and 356.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A high-scoring answer classifies gubernatorial powers before asking whether advice or discretion controls each one.

MUST-WRITE KEYWORDS

- executive powers
- legislative powers
- financial powers
- Article 161
- statutory role

How to use them: Frame the answer through executive powers; define legislative powers, connect financial powers with Article 161 to explain the mechanism, and use statutory role for the decisive comparison or qualification.

Visual 10 - Five power clusters

GOVERNOR				
Executive	Legislative	Financial	Judicial	Special
appointments, business rules and information	sessions, Bills, ordinances	budget, grants, SFC	Article 161, judges	discretion, Sixth Schedule/ UT charge

A. Executive powers

- [FACT] State executive action is formally taken in the Governor's name under Article 166.
- [FACT] The Governor appoints the Chief Minister and, on the CM's advice, other ministers.
- [FACT] The Governor appoints the Advocate General under Article 165.
- [FACT] Constitutionally specified appointments include the State Election Commissioner, State Public Service Commission chair/members and district judges in consultation with the High Court under their respective provisions.
- [FACT] The Governor may seek information from the CM under Article 167.

- [FACT] The Governor may report under Article 356 that State government cannot be carried on according to the Constitution.
- [LIMIT] The Governor does not appoint High Court judges; the President appoints them after constitutionally required consultation.

Visual 11 - Appointment caution table

Office/body	Governor's role	Trap
Chief Minister	Appoints	Choice is conventional under clear majority, bounded under hung House
Other State ministers	Appoints on CM's advice	Not personal selection
Advocate General	Appoints	Must be qualified to be a High Court judge
State Election Commissioner	Appoints under Article 243K	Removal protection is separately structured
SPSC chair/members	Appoints	Removal belongs to President under constitutional process
High Court judge	Consulted in appointment architecture	Governor does not appoint
District judge	Appoints in consultation with High Court	Judicial-independence constraint

B. Legislative powers

- [FACT] Article 168 makes the Governor a component of the State legislature.
- [FACT] Article 174 permits summoning, prorogation and dissolution of the Legislative Assembly, ordinarily on ministerial advice.
- [FACT] Article 175 permits addresses and messages to either House.
- [FACT] Article 176 requires a special address at the first session after a general election and the first session of each year.
- [FACT] Article 171 permits nomination of **one-sixth** of the Legislative Council in a bicameral State from persons with special knowledge or practical experience in specified fields.
- [FACT] The Governor does **not** nominate members to the Legislative Assembly under the present scheme.
- [FACT] Article 200 governs assent, withholding, return of a non-Money Bill and reservation for the President.
- [FACT] Article 213 governs ordinances.

Visual 12 - Legislative interface

```

State legislature
|
+-- Article 168: Governor + House(s)
+-- Article 171: Governor nominates 1/6 of Council
+-- Article 174: summon / prorogue / dissolve Assembly
+-- Article 175: address / messages
+-- Article 176: special address
+-- Article 200: Bill decision
+-- Article 213: ordinance when session condition permits

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C. Financial powers

- [FACT] The Governor causes the annual financial statement to be laid before the State legislature under Article 202.
- [FACT] A demand for a grant cannot be made except on the Governor's recommendation under Article 203(3).
- [FACT] A Money Bill and specified financial Bills require the Governor's recommendation under Article 207.
- [FACT] The State Contingency Fund is placed at the Governor's disposal under Article 267(2), subject to law.
- [FACT] The Governor constitutes the State Finance Commission under Article 243-I.
- [ANALYSIS] These are formal gateways of responsible finance, not a personal gubernatorial budget.

D. Judicial and clemency powers

- [FACT] Article 161 empowers the Governor to grant pardon, reprieve, respite, remission or commutation for offences against laws relating to matters within State executive power, subject to the Constitution's scope.
- [FACT] The Governor cannot exercise clemency over court-martial sentences.
- [FACT] The Governor cannot **pardon** a death sentence, but may suspend, remit or commute it.
- [FACT] District-judge appointments involve the Governor and High Court under Article 233.
- [LIMIT] Clemency is exercised on ministerial advice and remains open to limited judicial review for constitutionally recognised defects; it is not personal mercy.

E. University Chancellor and other statutory roles

- [FACT] The Constitution does not make the Governor the Chancellor of every State university.
- [FACT] A Chancellor or related university role arises, where it exists, under the relevant **State university statute**.
- [ANALYSIS] This distinction explains why university-law amendments can alter the role without amending Articles 153-167.
- [LIMIT] Models differ by State. Never universalise one State statute or a live office-holder dispute.

Visual 13 - Constitutional office versus statutory hat

Function	Source	Can State law redesign it?
Governor of State	Constitution	Not by ordinary State law
Assent under Article 200	Constitution	No
Chancellor of a State university	Relevant State statute	Yes, subject to constitutional limits
Visitor/chancellor selection role	Statute-specific	Yes

CLOSING RECALL FLOW - GOVERNOR'S POWERS: COMPLETE CLASSIFICATION

START / CONCEPT: Governor's powers: complete classification

↓

EXACT TERMS: executive powers · legislative powers · financial powers · Article 161 · statutory role

↓

MECHANISM / ARGUMENT: Identify the legal source, formal act, advice rule and limit for each power cluster.

↓

CONSEQUENCE / CONTRAST: Classification prevents ceremonial, discretionary and statute-created functions from being confused.

↓

UPSC TRAP / ANSWER-USE: University Chancellor status comes from State law, and the Governor does not appoint High Court judges.

↓

ANSWER-GRABBING FORMULATION: A high-scoring answer classifies gubernatorial powers before asking whether advice or discretion controls each one.

SESSION 6 - ARTICLE 163: AID, ADVICE AND THE NARROW FIELD OF DISCRETION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Council's advice is the default and gubernatorial discretion is a narrow constitutional exception.

Technical definition: Article 163 combines aid and advice, a discretion carve-out, a finality clause and secrecy of ministerial advice, all bounded by Shamsher Singh and later review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 163 creates limited exception, not a parallel political executive in Raj Bhavan.

MUST-WRITE KEYWORDS

- Article 163
- aid and advice
- discretion
- Shamsher Singh
- finality clause

How to use them: Frame the answer through Article 163; define aid and advice, connect discretion with Shamsher Singh to explain the mechanism, and use finality clause for the decisive comparison or qualification.

Visual 14 - The default-exception rule

DEFAULT

Governor acts on CM-led Council's aid and advice

|
v

EXCEPTION

Constitution expressly or by necessary implication
requires permitted discretion

|
v

CONTROL

Discretion remains constitutional, reviewable at its limits
and cannot become general political supervision

- [FACT] Article 163(1) establishes aid and advice, except insofar as the Constitution requires the Governor to act in discretion.
- [FACT] Article 163(2) contains a finality formulation concerning whether a matter is discretionary.
- [FACT] Article 163(3) bars judicial inquiry into whether, and if so what, advice ministers tendered.
- [FACT] Unlike Article 74 after the 42nd/44th Amendment scheme, Article 163 does not use an equivalent express textual command that all advice is binding.
- [LIMIT] That textual difference does **not** create a general personal discretion. *Shamsher Singh* and later cases keep discretion narrow.

Visual 15 - Express and situational discretion

Category	Illustrations	Control
Express/constitutionally anchored	Reserve Bill under Article 200; report under Article 356; special responsibilities where Constitution provides; UT administrator additional charge	Must remain within purpose
Situational/implied	Choose CM in hung Assembly; require floor test on objective doubt; respond to ministry that has demonstrably lost confidence; consider dissolution/alternative	Temporary, evidence-based and House-centred
Not discretion	Routine policy disagreement; choosing ministers contrary to CM; summoning House for partisan strategy; deciding intra-party leadership	Ministerial advice/party and House processes govern

Core rule: Discretion fills a constitutional gap; it does not create a rival elected executive.

Special and tribal responsibilities: Article 371A(1)(b) gives the Governor of Nagaland a special law-and-order responsibility, and Article 371H(a) does so for Arunachal Pradesh; both use individual judgment after consultation with the Council of Ministers. The Sixth Schedule separately assigns specified Governor functions in autonomous tribal-area administration. These are exceptional constitutional texts, not a general discretion available in every State.

CLOSING RECALL FLOW - ARTICLE 163: AID, ADVICE AND THE NARROW FIELD OF DISCRETION

START / CONCEPT: Article 163: aid, advice and the narrow field of discretion

↓

EXACT TERMS: Article 163 · aid and advice · discretion · Shamsher Singh · finality clause

↓

MECHANISM / ARGUMENT: Routine powers follow advice; only express text or necessary constitutional implication opens a temporary discretionary route.

↓

CONSEQUENCE / CONTRAST: Narrow discretion protects exceptional constitutional functions while preserving elected government.

↓

UPSC TRAP / ANSWER-USE: The absence of Article 74's exact wording does not make all Governor advice optional.

↓

ANSWER-GRABBING FORMULATION: Article 163 creates limited exception, not a parallel political executive in Raj Bhavan.

SESSION 7 - CASE-LAW CONTROL: PROPOSITION, SIGNIFICANCE AND LIMITATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Governor case law defines advice, pleasure, floor tests, dissolution and review through distinct propositions.

Technical definition: Shamsher Singh, Bommai, Rameshwar Prasad, B.P. Singhal, Nabam Rebia and Subhash Desai create a bounded doctrinal sequence.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Cases earn marks only when each name is attached to its exact Governor proposition and factual limit.

MUST-WRITE KEYWORDS

- Shamsher Singh
- S.R. Bommai
- B.P. Singhal
- Nabam Rebia
- Subhash Desai

How to use them: Frame the answer through Shamsher Singh; define S.R. Bommai, connect B.P. Singhal with Nabam Rebia to explain the mechanism, and use Subhash Desai for the decisive comparison or qualification.

Visual 16 - Doctrine ladder

Shamsher Singh (1974)
 constitutional head; advice is the norm
 ↓
 S.R. Bommai (1994)
 Article 356 review + floor of House
 ↓
 Rameshwar Prasad (2006)
 apprehension/horse-trading claim cannot justify mala fide dissolution
 ↓
 B.P. Singhal (2010)
 pleasure survives; arbitrary removal does not
 ↓
 Nabam Rebia (2016)
 Article 174/175 discretion is narrow; ordinary advice controls
 ↓
 Subhash Desai (2023)
 objective material required; floor test cannot settle intra-party dispute

Shamsher Singh v. State of Punjab (1974)

- [FACT] A seven-judge Bench treated the President and Governor as constitutional heads who ordinarily exercise powers on the aid and advice of their Councils of Ministers.
- [ANALYSIS] The case supplies the default rule for every power table: formal vesting does not imply personal government.
- [LIMIT] Constitutionally recognised discretionary situations remain.

S.R. Bommai v. Union of India (1994)

- [FACT] Article 356 satisfaction is judicially reviewable.
- [FACT] A disputed legislative majority should ordinarily be tested on the floor of the House, not decided through subjective gubernatorial assessment.
- [FACT] Federalism is part of Basic Structure.
- [ANALYSIS] The case turns Raj Bhavan's report from an unreviewable political trigger into a reasoned constitutional input.
- [LIMIT] Full Article 356 procedure belongs to Polity 14; this package uses the Governor/floor-test propositions.

Rameshwar Prasad v. Union of India (2006)

- [FACT] Dissolution of the Bihar Assembly based on the Governor's report concerning anticipated horse-trading was held unconstitutional/mala fide.
- [ANALYSIS] Suspicion about future conduct cannot replace actual House processes and objective evidence.
- [LIMIT] The case does not make political instability irrelevant; it requires constitutionally probative material and proper testing.

B.P. Singhal v. Union of India (2010)

- [FACT] Article 156 pleasure allows removal before five years and does not require routine disclosure of reasons.
- [FACT] The power cannot be exercised arbitrarily, capriciously, unreasonably or mala fide.
- [FACT] If the challenger establishes a prima facie case of arbitrariness, the Union must disclose material justifying the removal.
- [LIMIT] The Court does not convert the five-year outer term into guaranteed tenure or require a removal inquiry.

Nabam Rebia v. Deputy Speaker (2016)

- [FACT] The Governor's powers to summon/prorogue and send messages are normally exercised on aid and advice; Article 163 does not authorise self-expanding discretion.
- [ANALYSIS] Article 174 cannot be used to take over legislative scheduling for a partisan end.
- [CURRENT/LIMIT] The *Nabam Rebia* question concerning a Speaker facing a removal notice while adjudicating disqualification was referred by *Subhash Desai* to a larger seven-judge Bench and remains unresolved according

to the authoritative Core. Do not present that issue as finally settled.

Subhash Desai v. Principal Secretary, Governor of Maharashtra (2023)

- [FACT] A floor test requires **objective material** giving reason to believe that the incumbent government has lost House confidence.
- [FACT] Intra-party dissent, factional letters or apprehended instability are not by themselves sufficient material.
- [FACT] A Governor cannot enter the political arena or use a floor test to resolve an internal party dispute.
- [FACT] The Court did not restore the previous government because the Chief Minister resigned without facing the floor test.
- [LIMIT] The judgment did not disqualify members, restore a government or finally settle the referred *Nabam Rebia* Speaker-removal issue.
- [ANALYSIS] The floor test is a remedy for demonstrated constitutional doubt, not a device for manufacturing a change of government.

Visual 17 - Case-to-question router

Question signal	Primary case	What to write	Qualification
Ordinary advice	<i>Shamsher Singh</i>	Constitutional head, not personal executive	Narrow exceptions remain
Majority dispute/356	<i>Bommai</i>	Floor test + review	Use State context
Pre-emptive dissolution	<i>Rameshwar Prasad</i>	Apprehension is not objective proof	Facts still matter
Session/message discretion	<i>Nabam Rebia</i>	Article 174/175 usually advice-bound	Speaker-removal issue unresolved
Factional crisis	<i>Subhash Desai</i>	Objective material; no intra-party arbitration	No restoration due to CM resignation

CLOSING RECALL FLOW - CASE-LAW CONTROL: PROPOSITION, SIGNIFICANCE AND LIMITATION

START / CONCEPT: Case-law control: proposition, significance and limitation

|

v

EXACT TERMS: Shamsher Singh • S.R. Bommai • B.P. Singhal • Nabam Rebia • Subhash Desai

|

v

MECHANISM / ARGUMENT: Match the challenged act to advice, objective material, House testing, removal or dissolution doctrine.

|

v

CONSEQUENCE / CONTRAST: The case line shifts contested gubernatorial action from subjective politics toward reasons, evidence and review.

|

v

UPSC TRAP / ANSWER-USE: Subhash Desai did not restore the resigned government, and the referred Nabam Rebia issue remains unresolved.

|

v

ANSWER-GRABBING FORMULATION: Cases earn marks only when each name is attached to its exact Governor proposition and factual limit.

SESSION 8 - CHIEF MINISTER APPOINTMENT AND GOVERNMENT FORMATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Governor appoints the person most likely to command Legislative Assembly confidence as Chief Minister.

Technical definition: Article 164 appointment operates through clear-majority convention or bounded hung-House discretion, followed by an early floor test.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

MUST-WRITE KEYWORDS

- **Article 164**
- **hung Assembly**
- **Chief Minister**
- **floor test**
- **B.R. Kapur**

How to use them: Frame the answer through Article 164; define hung Assembly, connect Chief Minister with floor test to explain the mechanism, and use B.R. Kapur for the decisive comparison or qualification.

Visual 18 - Appointment algorithm

```

Election result
|
+-- Clear majority?
|   |
|   +-- Yes -> appoint recognised majority leader
|
+-- No clear majority
    |
    v
    assess objective support
    - pre-poll alliance
    - coalition/support commitments
    - stable claim capable of House confidence
        |
        v
        appoint provisionally
            |
            v
            prompt floor test in Assembly
    
```

- [FACT] Article 164(1) says the Chief Minister is appointed by the Governor.
- [FACT] Under a clear Assembly majority, constitutional convention leaves no free political choice: the majority leader is appointed.
- [ANALYSIS] In a hung Assembly, the Governor may identify the person most likely to command confidence, using objective support rather than ideological preference.
- [FACT] Majority need not be conclusively proved before appointment; survival authority comes from the Assembly floor.
- [LIMIT] Commission orders of preference are valuable neutral guides but are proposals/conventions, not an inflexible constitutional algorithm for every configuration.

Visual 19 - Appointment is not confidence

Stage	Actor	Constitutional meaning
Invitation	Governor	Temporary access to form ministry
Oath	Governor administers	Assumption of office
Floor test	Legislative Assembly	Democratic proof of confidence
Continuing tenure	Assembly numbers	Real survival condition

Non-member Chief Minister

- [FACT] Article 164(4) permits a minister, including the CM, to remain without membership of the State legislature for no more than **six consecutive months**.
- [FACT] In a bicameral State, the CM may belong to either House.
- [LIMIT] The six-month window cures temporary non-membership, not an underlying constitutional disqualification. *B.R. Kapur v. State of Tamil Nadu* supplies the controlling caution.

- [LIMIT] There is no separate constitutional age qualification for the office of CM; ordinary legislative eligibility is relevant, generally 25 for Assembly and 30 for Council membership.

CLOSING RECALL FLOW - CHIEF MINISTER APPOINTMENT AND GOVERNMENT FORMATION

START / CONCEPT: Chief Minister appointment and government formation

|
v

EXACT TERMS: Article 164 · hung Assembly · Chief Minister · floor test · B.R. Kapur

|
v

MECHANISM / ARGUMENT: Invite the credible confidence claimant, require timely proof and avoid secret or partisan headcounts.

|
v

CONSEQUENCE / CONTRAST: The process enables government while keeping final legitimacy with elected representatives.

|
v

UPSC TRAP / ANSWER-USE: The largest party has no automatic absolute claim, and an unqualified person cannot use the six-month rule.

|
v

ANSWER-GRABBING FORMULATION: Government formation is a temporary selection judgment whose democratic validation occurs on the Assembly floor.

SESSION 9 - FLOOR TEST: TRIGGER, PROCESS AND LIMITS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A floor test publicly determines whether a ministry retains Legislative Assembly confidence.

Technical definition: Bommai and Subhash Desai require objective material for intervention and reserve intra-party leadership disputes for party processes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The floor test is the constitutional cure for demonstrated doubt, not a device for manufacturing instability.

MUST-WRITE KEYWORDS

- floor test
- objective material
- Assembly confidence
- S.R. Bommai
- Subhash Desai

How to use them: Frame the answer through floor test; define objective material, connect Assembly confidence with S.R. Bommai to explain the mechanism, and use Subhash Desai for the decisive comparison or qualification.

Visual 20 - Objective-material threshold

Political noise alone

- media reports
- intra-party dissent
- rival faction letters

|

X not enough by itself

|

Constitutionally relevant objective material

- withdrawal of coalition/support
- resignations affecting numbers
- defeat indicating confidence loss
- credible rival claim tied to House strength

|

v

Prompt, fair floor test

- [FACT] *Bommai* makes the House floor the ordinary forum for testing a disputed majority.
- [FACT] *Subhash Desai* requires objective material and rejects use of a floor test to resolve an internal party dispute.
- [ANALYSIS] The Governor may initiate a test only to clarify Assembly confidence, not party legitimacy, whip validity or factional control.
- [LIMIT] The Speaker's Tenth Schedule proceedings and the Governor's confidence inquiry are distinct legal tracks. One cannot predetermine the other by partisan timing.

Visual 21 - Fair-test checklist

Requirement	Why it matters
Objective trigger	Prevents speculative intervention
Reasonable promptness	Stops engineered delay or surprise
Assembly forum	Lets elected members decide confidence
Neutral procedure	Avoids Raj Bhavan becoming a political participant
Separate defection track	Preserves Speaker/court jurisdiction
Judicial review at limits	Checks mala fides and irrelevant material

CLOSING RECALL FLOW - FLOOR TEST: TRIGGER, PROCESS AND LIMITS

START / CONCEPT: Floor test: trigger, process and limits

|

v

EXACT TERMS: floor test • objective material • Assembly confidence • S.R. Bommai • Subhash Desai

|

v

MECHANISM / ARGUMENT: Relevant evidence creates doubt, the House is convened promptly and members vote under judicially reviewable procedure.

|

v

CONSEQUENCE / CONTRAST: House-centred verification replaces subjective Raj Bhavan assessment with democratic proof.

|

v

UPSC TRAP / ANSWER-USE: Factional letters or political disagreement alone do not automatically justify a floor test.

|

v

ANSWER-GRABBING FORMULATION: The floor test is the constitutional cure for demonstrated doubt, not a device for manufacturing instability.

SESSION 10 - DISMISSAL, DISSOLUTION AND CARETAKER GOVERNMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Dismissal ends a ministry, dissolution ends the Assembly, and caretaker convention bridges the transition.

Technical definition: Articles 164 and 174 operate with Assembly confidence, alternative-government feasibility and Rameshwar Prasad limits on speculative dissolution.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Dismissal and dissolution are distinct constitutional consequences and neither should precede a proper confidence inquiry.

MUST-WRITE KEYWORDS

- dismissal
- dissolution
- caretaker government
- Article 174
- Rameshwar Prasad

How to use them: Frame the answer through dismissal; define dissolution, connect caretaker government with Article 174 to explain the mechanism, and use Rameshwar Prasad for the decisive comparison or qualification.

Visual 22 - Loss-of-confidence decision matrix

Situation	Constitutionally proper response
CM retains majority	Governor cannot dismiss
Majority genuinely disputed	Floor test
Ministry loses test and resigns	Explore viable alternative
Ministry loses test and refuses to resign	Dismissal may follow
No viable alternative	Dissolution/election route
Assembly dissolved/election pending	Incumbent may continue as caretaker by convention

- [FACT] "Governor's pleasure" in Article 164 does not authorise dismissal of a CM who retains Assembly confidence.
- [ANALYSIS] Individual ministerial pleasure is operationally mediated by the CM; the Governor does not personally manage the team.
- [ANALYSIS] A dissolution request from a defeated or minority ministry may be declined if a demonstrably viable alternative government exists.
- [LIMIT] Dissolution is not a punishment for political disagreement. It is a route when representative government cannot otherwise be formed.
- [FACT] The Constitution does not contain a complete separately titled caretaker-government code.
- [ANALYSIS] Caretaker convention supports continuity while counselling restraint on major irreversible policy, appointments and commitments unless urgency or necessity requires action.

Visual 23 - Caretaker convention

Outgoing ministry continues

- |
- +-- essential administration
- +-- security and urgent finance
- +-- implementation already committed
- |
- X-- avoid avoidable irreversible policy
- X-- avoid partisan appointments
- X-- avoid binding successor without necessity

CLOSING RECALL FLOW - DISMISSAL, DISSOLUTION AND CARETAKER GOVERNMENT

START / CONCEPT: Dismissal, dissolution and caretaker government

|

v

EXACT TERMS: dismissal · dissolution · caretaker government · Article 174 · Rameshwar Prasad

|

v

MECHANISM / ARGUMENT: After demonstrated confidence loss, resignation or dismissal follows; dissolution is considered only after testing viable alternatives.

|

v

CONSEQUENCE / CONTRAST: The sequence protects continuity and prevents pre-emptive destruction of a representative House.

|

v

UPSC TRAP / ANSWER-USE: A Governor cannot dissolve merely on anticipated horse-trading or treat caretaker government as full fresh mandate.

|

v

ANSWER-GRABBING FORMULATION: Dismissal and dissolution are distinct constitutional consequences and neither should precede a proper confidence inquiry.

SESSION 11 - ARTICLE 356 RECOMMENDATION AND THE FEDERAL FIREWALL

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Governor may report constitutional breakdown, but the President and Parliament control the Article 356 proclamation.

Technical definition: The report is evidentiary input reviewed under Bommai for relevance, mala fides and constitutional purpose; Article 356 also permits action otherwise than on a report.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

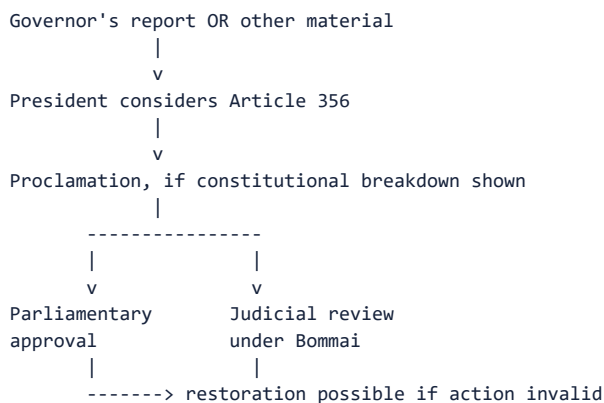
Raj Bhavan reports trigger scrutiny, not an unreviewable power to dismiss State government.

MUST-WRITE KEYWORDS

- Article 356
- Governor report
- constitutional breakdown
- S.R. Bommai
- federalism

How to use them: Frame the answer through Article 356; define Governor report, connect constitutional breakdown with S.R. Bommai to explain the mechanism, and use federalism for the decisive comparison or qualification.

Visual 24 - From report to constitutional control



- [FACT] Article 356 may operate on a Governor's report **or otherwise**; a report is important but not textually indispensable.
- [FACT] The report must concern inability to carry on State government according to the Constitution, not mere maladministration or political inconvenience.
- [FACT] Where the issue is legislative majority, a floor test ordinarily displaces subjective assessment.
- [FACT] *Bommai* permits review of the proclamation's material and constitutional relevance.
- [FACT] *Rameshwar Prasad* rejects anticipatory dissolution based on unsupported apprehension.
- [ANALYSIS] The Governor is an information bridge, not the final judge of State democracy.
- [LIMIT] Article 356 is a last-resort remedy. Full approval, duration and consequence rules are in Polity 14.

CLOSING RECALL FLOW - ARTICLE 356 RECOMMENDATION AND THE FEDERAL FIREWALL

START / CONCEPT: Article 356 recommendation and the federal firewall

↓

EXACT TERMS: Article 356 · Governor report · constitutional breakdown · S.R. Bommai · federalism

↓

MECHANISM / ARGUMENT: Reasoned material reaches the President, proclamation faces parliamentary approval and courts may review the basis.

↓

CONSEQUENCE / CONTRAST: The firewall protects State autonomy while retaining an emergency response to genuine breakdown.

↓

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: political instability or majority doubt should ordinarily be tested on the floor before Article...

↓

ANSWER-GRABBING FORMULATION: Raj Bhavan reports trigger scrutiny, not an unreviewable power to dismiss State government.

SESSION 12 - ARTICLES 168, 171 AND 174-176: GOVERNOR INSIDE THE LEGISLATIVE PROCESS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Governor is a component of the State legislature and performs specified session, nomination, address and message functions.

Technical definition: Articles 168, 171 and 174-176 place the Governor in legislative architecture without making the office-holder a member of either House.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Governor participates constitutionally in lawmaking while remaining outside legislative membership.

MUST-WRITE KEYWORDS

- Article 168

- Article 171
- Article 174
- Article 175
- Article 176

How to use them: Frame the answer through Article 168; define Article 171, connect Article 174 with Article 175 to explain the mechanism, and use Article 176 for the decisive comparison or qualification.

Visual 25 - Legislature map

Article	Governor's relation	Key caution
168	Component of State legislature	Not a member of either House
171	Nominates one-sixth of Legislative Council	Never Assembly nomination
174	Summons, prorogues, dissolves Assembly	Normally advice-bound
175	Addresses and sends messages	Not a general power to direct legislative outcomes
176	Special address	First session after election and first each year

Legislative Council nominations

- [FACT] The Governor nominates one-sixth of Council members from persons with special knowledge or practical experience in literature, science, art, cooperative movement and social service.
- [LIMIT] The nomination power exists only where the State has a Legislative Council.
- [FACT] The Governor no longer has a general power to nominate an Anglo-Indian member to a Legislative Assembly under the current constitutional scheme.

Sessions and addresses

- [FACT] Article 174 requires no more than six months between the last sitting of one session and the first sitting of the next.
- [FACT] Prorogation ends a session; dissolution ends the life of the Assembly, not the permanent Council.
- [FACT] Under *Nabam Rebia*, Article 174/175 powers are normally exercised on ministerial advice.

CLOSING RECALL FLOW - ARTICLES 168, 171 AND 174-176: GOVERNOR INSIDE THE LEGISLATIVE PROCESS

```

START / CONCEPT: Articles 168, 171 and 174-176: Governor inside the legislative process
|
v
EXACT TERMS: Article 168 · Article 171 · Article 174 · Article 175 · Article 176
|
v
MECHANISM / ARGUMENT: The Governor convenes and addresses Houses, sends messages and nominates one-
sixth of a Legislative Council where one exists.
|
v
CONSEQUENCE / CONTRAST: These acts maintain institutional continuity and communication under
responsible-government conventions.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the Governor nominates no member to
the Assembly under the current scheme and usually...
|
v
ANSWER-GRABBING FORMULATION: The Governor participates constitutionally in lawmaking while
remaining outside legislative membership.

```

SESSION 13 - ARTICLE 200: ASSENT, WITHHOLDING, RETURN AND RESERVATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 200 gives the Governor constitutionally defined options when a State Bill is presented.

Technical definition: The Governor may assent, withhold, return a non-Money Bill or reserve it; the second proviso mandates reservation where the Bill endangers High Court constitutional powers.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

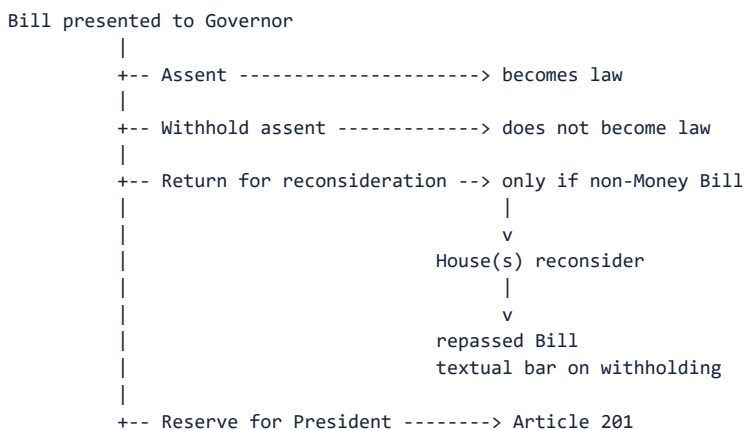
Article 200 is a decision gateway, not authority to invent a permanent pocket veto.

MUST-WRITE KEYWORDS

- **Article 200**
- **assent**
- **withhold**
- **return**
- **reserve for President**

How to use them: Frame the answer through Article 200; define assent, connect withhold with return to explain the mechanism, and use reserve for President for the decisive comparison or qualification.

Visual 26 - Article 200 decision tree



- [FACT] Article 200 applies when a Bill passed by the State legislature is presented to the Governor.
- [FACT] The Governor may assent, withhold assent, return a **non-Money Bill** for reconsideration or reserve the Bill for the President.
- [FACT] A Money Bill cannot be returned under the first proviso.
- [FACT] If a returned Bill is repassed, the Article 200 text says the Governor shall not withhold assent.
- [LIMIT] Do not merge this direct return route with Article 201's reserved-Bill route.

Mandatory reservation for High Court protection

- [FACT] The second proviso to Article 200 requires reservation where, in the Governor's opinion, the Bill would so derogate from High Court powers as to endanger the position which the High Court is designed by the Constitution to fill.
- [ANALYSIS] This is an institutional-independence safeguard, not a general power to reserve every unpopular Bill.

Visual 27 - Assent choices and democratic cost

Choice	Constitutional function	Abuse risk	Control
Assent	Completes legislation	Minimal	Advice/default

Choice	Constitutional function	Abuse risk	Control
Withhold	Rejects legal completion	Political veto concern	Constitutional purpose/review at limits
Return	Requests reconsideration	Delay	Non-Money Bill only
Reserve	Federal/constitutional scrutiny	Centralisation	Purpose, mandatory HC proviso, Article 201
Inaction	No textual "pocket veto" label	Suspends elected law-making	2025 limited mandamus against prolonged unexplained delay

CLOSING RECALL FLOW - ARTICLE 200: ASSENT, WITHHOLDING, RETURN AND RESERVATION

START / CONCEPT: Article 200: assent, withholding, return and reservation

|

v

EXACT TERMS: Article 200 • assent • withhold • return • reserve for President

|

v

MECHANISM / ARGUMENT: Bill type and constitutional concern determine the available option; reconsideration prevents a second return of the same Bill.

|

v

CONSEQUENCE / CONTRAST: The gateway links State legislation with constitutional scrutiny and possible presidential consideration.

|

v

UPSC TRAP / ANSWER-USE: A Money Bill cannot be returned, and mandatory High Court-protection reservation is not optional.

|

v

ANSWER-GRABBING FORMULATION: Article 200 is a decision gateway, not authority to invent a permanent pocket veto.

SESSION 14 - ARTICLE 201 AND THE PRESIDENT ON RESERVED STATE BILLS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 201 governs presidential action after a Governor reserves a State Bill.

Technical definition: The President may assent or withhold and may direct return of a non-Money Bill through the Governor; repassage does not compel presidential assent.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reservation transfers the decision to the President and changes the repassage consequence.

MUST-WRITE KEYWORDS

- Article 201
- reserved Bill
- President
- reconsideration

How to use them: Frame the answer through Article 201; define reserved Bill, connect President with reconsideration to explain the mechanism, and close with the decisive comparison or qualification.

Visual 28 - Reserved-Bill route

Governor reserves Bill

|

v

President under Article 201

- assent
- withhold assent
- for non-Money Bill, direct return through Governor

|

v

State legislature reconsiders within constitutional route

|

v

Repassed Bill returns for presidential consideration

|

v

No Article 200-style duty compelling presidential assent

- [FACT] Under Article 201, the President may assent or withhold assent to a reserved Bill.
- [FACT] For a non-Money Bill, the President may direct the Governor to return it to the State legislature for reconsideration.
- [FACT] The President is **not obliged to assent** merely because the State legislature re-passes a reserved Bill.
- [ANALYSIS] Article 201 therefore supplies a stronger central gate than the direct Article 200 return loop.
- [LIMIT] Prior presidential sanction and post-passage reservation are different constitutional mechanisms.

CLOSING RECALL FLOW - ARTICLE 201 AND THE PRESIDENT ON RESERVED STATE BILLS

START / CONCEPT: Article 201 and the President on reserved State Bills

|

v

EXACT TERMS: Article 201 • reserved Bill • President • reconsideration

|

v

MECHANISM / ARGUMENT: The President chooses an available option, and any directed reconsideration returns through the Governor to the House.

|

v

CONSEQUENCE / CONTRAST: The mechanism protects Union or constitutional interests while creating a significant federal checkpoint.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 111's mandatory assent after ordinary-Bill repassage has no identical Article 201 counterpart.

|

v

ANSWER-GRABBING FORMULATION: Reservation transfers the decision to the President and changes the repassage consequence.

SESSION 15 - ASSENT DOCTRINE AFTER THE TWO 2025 DECISIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The 2025 assent decisions address delay, judicial review, timelines and deemed assent under Articles 200-201.

Technical definition: Tamil Nadu used timelines and deemed assent on its facts; the later Article 143 opinion rejected rigid court-made timelines and automatic deemed assent while preserving limited review of prolonged inaction.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The two decisions must be reconciled narrowly rather than described as a simple overruling sequence.

MUST-WRITE KEYWORDS

- Tamil Nadu Governor case
- Article 143 opinion

- deemed assent
- judicial review
- Articles 200-201

How to use them: Frame the answer through Tamil Nadu Governor case; define Article 143 opinion, connect deemed assent with judicial review to explain the mechanism, and use Articles 200-201 for the decisive comparison or qualification.

Visual 29 - Dated legal-control timeline

8 April 2025

State of Tamil Nadu v Governor

- prescribed timelines
- deemed assent used on its facts

|
v

20 November 2025

Five-judge Article 143 advisory opinion

- no court-created rigid timelines
- no automatic deemed assent
- prolonged unexplained indefinite inaction reviewable
- mandamus may require action, not dictate the option

|
v

28 August 2026 package rule

Use later position narrowly as controlling;
do not say it "overruled" April judgment

- [CURRENT] The April judgment supplied a forceful remedy to prolonged gubernatorial delay.
- [CURRENT] The November advisory opinion rejected judicial addition of fixed clocks and automatic assent consequences to Articles 200-201.
- [CURRENT] The opinion did not constitutionalise indefinite inaction: limited review may require the authority to act where delay is prolonged, unexplained and indefinite.
- [LIMIT] A court may direct constitutional movement without choosing assent, withholding, return or reservation for the authority.
- [LIMIT] Because the November opinion is advisory, describe it as the **later controlling position narrowly**, not as a binding overruling.

Visual 30 - Safe Mains formulation

Unsafe claim	Exam-safe formulation
"Governor has three months"	No court-created rigid timeline controls after the Nov 2025 opinion
"Delay automatically means assent"	No automatic deemed assent
"Governor may sit forever"	Prolonged unexplained indefinite inaction attracts limited review
"Advisory opinion overruled April case"	It is non-binding and later; use it narrowly as controlling on this issue
"Court can itself select reservation/assent"	Mandamus may require action without dictating the constitutional choice

CLOSING RECALL FLOW - ASSENT DOCTRINE AFTER THE TWO 2025 DECISIONS

START / CONCEPT: Assent doctrine after the two 2025 decisions

|

v

EXACT TERMS: Tamil Nadu Governor case · Article 143 opinion · deemed assent · judicial review · Articles 200-201

|

v

MECHANISM / ARGUMENT: Courts may examine egregious delay and direct action, but cannot insert an automatic constitutional fiction absent text.

|

v

CONSEQUENCE / CONTRAST: The doctrine checks indefinite inaction while preserving the Constitution's allocation of assent authority.

|

v

UPSC TRAP / ANSWER-USE: The advisory opinion is non-binding and does not create a lawful pocket veto.

|

v

ANSWER-GRABBING FORMULATION: The two decisions must be reconciled narrowly rather than described as a simple overruling sequence.

SESSION 16 - ARTICLE 213 ORDINANCES: EMERGENCY BRIDGE, NOT PARALLEL LEGISLATURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Governor's ordinance temporarily addresses immediate legislative need when the required House or Houses are not in session.

Technical definition: Article 213 gives Act-like force subject to legislative competence, presidential-instruction cases, laying and six-week expiry after reassembly.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

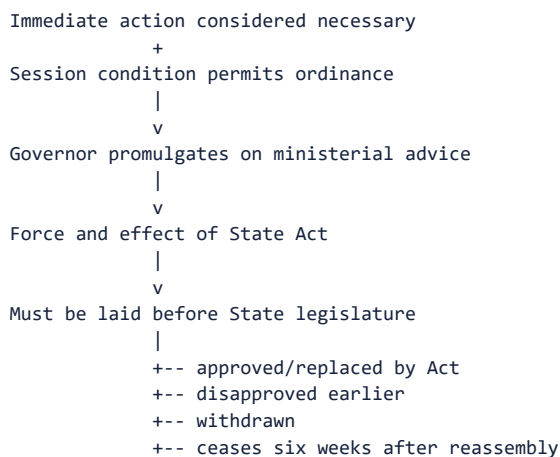
The ordinance is a temporary constitutional bridge whose legitimacy depends on returning lawmaking to the legislature.

MUST-WRITE KEYWORDS

- **Article 213**
- **ordinance**
- **six weeks**
- **legislative competence**
- **presidential instructions**

How to use them: Frame the answer through Article 213; define ordinance, connect six weeks with legislative competence to explain the mechanism, and use presidential instructions for the decisive comparison or qualification.

Visual 31 - Ordinance life cycle



- [FACT] Article 213 permits an ordinance when the Legislative Assembly is not in session; in a bicameral State, the prohibition applies when both Houses are in session.
- [FACT] The Governor must be satisfied that circumstances require immediate action, but the power operates through responsible government, not personal law-making.
- [FACT] An ordinance has the same force and effect as a State Act, subject to legislative competence and constitutional limits.
- [FACT] It must be laid before the legislature and ceases six weeks after reassembly; where Houses reassemble on different dates, the later date controls the six-week period.
- [FACT] It may cease earlier through disapproval or be withdrawn.
- [FACT] Presidential instructions are required in constitutionally specified cases analogous to prior sanction, reservation or invalidity without presidential assent.

Re-promulgation

- [FACT] *D.C. Wadhwa v. State of Bihar* (1987) characterised routine serial re-promulgation as a **fraud on the Constitution**.
- [FACT] *Krishna Kumar Singh v. State of Bihar* (2017), seven judges, 5:2, reaffirmed legislative supremacy, held laying mandatory and treated satisfaction as reviewable at constitutional limits.
- [FACT] Rights and liabilities created by a lapsed ordinance do not automatically survive in every case.
- [ANALYSIS] Re-promulgation replaces legislative deliberation with executive repetition and is therefore unconstitutional when used as a regular governing method.
- [LIMIT] The ordinance power itself is valid; urgency may justify it. The vice lies in bypass, not in every promulgation.

Visual 32 - Ordinance validity test

Question	If answer is weak, constitutional risk rises
Was the session condition met?	Invalid use of Article 213
Was immediate action genuinely required?	Review for irrelevant/mala fide material
Was the subject within State competence?	Legislative incompetence
Were presidential instructions required?	Procedural invalidity
Was it laid promptly?	<i>Krishna Kumar Singh</i> violation
Is it being serially reissued?	<i>Wadhwa</i> fraud-on-Constitution concern

CLOSING RECALL FLOW - ARTICLE 213 ORDINANCES: EMERGENCY BRIDGE, NOT PARALLEL LEGISLATURE

START / CONCEPT: Article 213 ordinances: emergency bridge, not parallel legislature

↓

EXACT TERMS: Article 213 · ordinance · six weeks · legislative competence · presidential instructions

↓

MECHANISM / ARGUMENT: Ministerial advice and immediate necessity produce an ordinance, which must be laid and either approved or allowed to lapse.

↓

CONSEQUENCE / CONTRAST: The device preserves continuity without permanently bypassing representative legislation.

↓

UPSC TRAP / ANSWER-USE: The Governor cannot issue an ordinance whenever the Assembly is sitting or on a subject outside State legislative competence.

↓

ANSWER-GRABBING FORMULATION: The ordinance is a temporary constitutional bridge whose legitimacy depends on returning lawmaking to the legislature.

SESSION 17 - ARTICLE 161 COMPARED WITH ARTICLE 72

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 161 and 72 confer executive clemency over different offence fields and sentence categories.

Technical definition: The Governor acts for offences within State executive power, cannot exercise court-martial clemency and cannot pardon a death sentence, though suspension, remission or commutation remain possible.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Clemency comparison must separate offence field, court martial and the precise treatment of a death sentence.

MUST-WRITE KEYWORDS

- Article 161
- Article 72
- death sentence
- court martial
- clemency

How to use them: Frame the answer through Article 161; define Article 72, connect death sentence with court martial to explain the mechanism, and use clemency for the decisive comparison or qualification.

Visual 33 - Clemency comparison

Dimension	President - Article 72	Governor - Article 161
Court-martial	All forms of clemency available	No power
Death sentence	May pardon and grant lesser forms	Cannot pardon; may suspend, remit or commute
Ordinary offence field	Union executive competence	State executive competence
Advice	Union Council of Ministers	State Council of Ministers
Review	Limited constitutional review	Same broad review logic

- [FACT] Clemency forms include pardon, reprieve, respite, remission and commutation, but the Governor's jurisdiction is narrower.
- [FACT] *Maru Ram* establishes that clemency is exercised on ministerial advice.
- [FACT] *Epuru Sudhakar* permits limited review for mala fides, arbitrariness, non-application of mind and relevant/irrelevant-material defects.

- [ANALYSIS] Clemency is a constitutional safety valve for justice, public policy and humanitarian considerations; it is not an appellate judgment.
- [LIMIT] Do not write that the Governor can pardon a death sentence merely because Article 161 concerns State law.

CLOSING RECALL FLOW - ARTICLE 161 COMPARED WITH ARTICLE 72

START / CONCEPT: Article 161 compared with Article 72

|

v

EXACT TERMS: Article 161 · Article 72 · death sentence · court martial · clemency

|

v

MECHANISM / ARGUMENT: The relevant Council advises the constitutional head, whose order remains reviewable for recognised constitutional defects.

|

v

CONSEQUENCE / CONTRAST: Clemency tempers punishment while preserving federal allocation and rule-of-law controls.

|

v

UPSC TRAP / ANSWER-USE: Do not say the Governor has no power over a death sentence; the missing power is pardon, not suspension, remission or commutation.

|

v

ANSWER-GRABBING FORMULATION: Clemency comparison must separate offence field, court martial and the precise treatment of a death sentence.

SESSION 18 - CHIEF MINISTER: CONSTITUTIONAL POSITION AND POWERS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Chief Minister leads the State government because Assembly confidence sustains the Council of Ministers.

Technical definition: Articles 163, 164 and 167 make the CM head of the Council, ministerial selector, policy coordinator, legislative leader and communication channel to the Governor.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

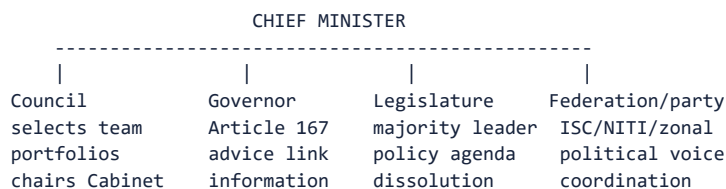
The Chief Minister is the real State executive because political authority flows through confidence and collective responsibility.

MUST-WRITE KEYWORDS

- Chief Minister
- Article 164
- Assembly confidence
- Council of Ministers
- real executive

How to use them: Frame the answer through Chief Minister; define Article 164, connect Assembly confidence with Council of Ministers to explain the mechanism, and use real executive for the decisive comparison or qualification.

Visual 34 - CM as the State executive hub



- [FACT] The CM is the head of the State Council of Ministers and the real political executive.
- [FACT] The CM recommends appointment and removal of ministers, allocates/reshuffles portfolios and chairs Council/Cabinet meetings.
- [FACT] The CM's resignation or death ends the existing ministry as a CM-headed Council; one minister's resignation does not.
- [FACT] The CM is the principal constitutional communication channel between the Council and Governor under Article 167.
- [FACT] The CM leads the government's legislative programme, advises on sessions and may advise dissolution subject to constitutional circumstances.
- [ANALYSIS] Party leadership, coalition dependence and Assembly arithmetic determine the practical strength of a CM; the Constitution supplies office, not a uniform level of dominance.
- [LIMIT] Roles in intergovernmental bodies or State planning arrangements may arise from institutional practice; do not confuse them with a closed Article 164 list.

CLOSING RECALL FLOW - CHIEF MINISTER: CONSTITUTIONAL POSITION AND POWERS

START / CONCEPT: Chief Minister: constitutional position and powers

|
v

EXACT TERMS: Chief Minister · Article 164 · Assembly confidence · Council of Ministers · real executive

|
v

MECHANISM / ARGUMENT: The CM forms and coordinates the ministry, controls portfolios and advice, and links Cabinet decisions to Governor and legislature.

|
v

CONSEQUENCE / CONTRAST: The office integrates policy, administration and legislative responsibility.

|
v

UPSC TRAP / ANSWER-USE: A Governor formally appoints the CM but cannot dismiss a CM who demonstrably retains Assembly confidence.

|
v

ANSWER-GRABBING FORMULATION: The Chief Minister is the real State executive because political authority flows through confidence and collective responsibility.

SESSION 19 - ARTICLE 167: COMMUNICATE, FURNISH, COLLECTIVISE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 167 requires the Chief Minister to keep the Governor constitutionally informed.

Technical definition: The CM communicates Council decisions and legislative proposals, supplies requested information and may place an individual minister's decision before the Council.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 167 creates an information bridge, not a parallel gubernatorial administration.

MUST-WRITE KEYWORDS

- Article 167
- communication
- information

- **Council decision**
- **Chief Minister**

How to use them: Frame the answer through Article 167; define communication, connect information with Council decision to explain the mechanism, and use Chief Minister for the decisive comparison or qualification.

Visual 35 - The three duties

COMMUNICATE

Council decisions on administration and legislative proposals

|

FURNISH

Information the Governor calls for

|

COLLECTIVISE

Place an individual minister's unconsidered decision before Council if the Governor so requires

- [FACT] Article 167(a) requires communication of Council decisions concerning State administration and legislative proposals.
- [FACT] Article 167(b) requires furnishing information called for by the Governor.
- [FACT] Article 167(c) allows the Governor to require that a matter decided by an individual minister but not considered by the Council be placed before the Council.
- [ANALYSIS] Article 167 protects informed constitutional headship and collective responsibility; it does not create a power to substitute gubernatorial policy.

Memory line: Article 167 = **Communicate - Furnish - Collectivise.**

CLOSING RECALL FLOW - ARTICLE 167: COMMUNICATE, FURNISH, COLLECTIVISE

START / CONCEPT: Article 167: communicate, furnish, collectivise

|

v

EXACT TERMS: Article 167 • communication • information • Council decision • Chief Minister

|

v

MECHANISM / ARGUMENT: The Governor requests constitutionally relevant information through the CM, who ensures collective Cabinet consideration where required.

|

v

CONSEQUENCE / CONTRAST: The duties support informed constitutional action and collective responsibility.

|

v

UPSC TRAP / ANSWER-USE: The Governor may seek information but cannot use Article 167 to direct ordinary policy.

|

v

ANSWER-GRABBING FORMULATION: Article 167 creates an information bridge, not a parallel gubernatorial administration.

SESSION 20 - STATE COUNCIL OF MINISTERS UNDER ARTICLES 163-164

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The State Council aids and advises the Governor and remains collectively responsible to the Legislative Assembly.

Technical definition: Articles 163-164 govern appointment on CM advice, tenure, oath, six-month membership, collective responsibility and individual office during pleasure.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

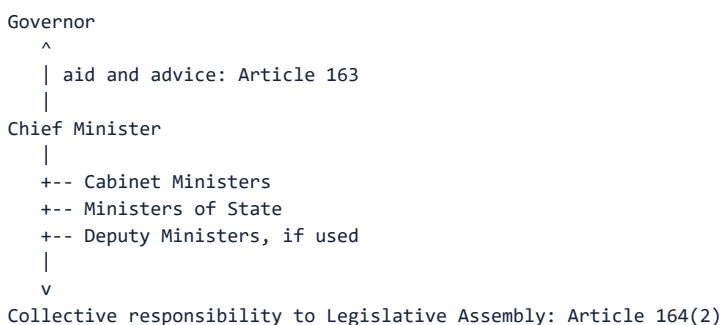
The Council converts electoral confidence into coordinated executive action under a Chief Minister.

MUST-WRITE KEYWORDS

- Article 163
- Article 164
- collective responsibility
- ministerial advice
- six-month rule

How to use them: Frame the answer through Article 163; define Article 164, connect collective responsibility with ministerial advice to explain the mechanism, and use six-month rule for the decisive comparison or qualification.

Visual 36 - Responsibility architecture



Appointment and tenure

- [FACT] The Governor appoints the CM; other ministers are appointed by the Governor on the CM's advice.
- [FACT] Ministers hold office during the Governor's pleasure.
- [ANALYSIS] In parliamentary practice, that pleasure is operationally controlled by the CM for individual ministers while the whole ministry depends on Assembly confidence.
- [FACT] The Governor administers oaths of office and secrecy in the Third Schedule.
- [FACT] Article 164(4) applies the six-consecutive-month non-member rule to ministers.

Collective responsibility

- [FACT] The entire Council is collectively responsible to the **Legislative Assembly**, not the Legislative Council.
- [FACT] A carried no-confidence motion or demonstrated loss of essential confidence requires the ministry to resign or pursue a constitutionally proper dissolution route.
- [ANALYSIS] Collective responsibility has three dimensions: confidence, solidarity and unified accountability.
- [LIMIT] Every defeat on an ordinary Bill does not mechanically equal loss of confidence; context, express confidence motions and essential supply matter.

Individual responsibility

- [FACT] One minister may leave office without the whole Council falling.
- [ANALYSIS] The CM enforces individual responsibility through portfolio control, demand for resignation and advice to remove.
- [LIMIT] "Individual responsibility" is political/constitutional and must not be confused with criminal or civil liability.

Visual 37 - Responsibility comparison

Type	Constitutional/practical base	Consequence
Collective	Article 164(2)	Whole ministry stands/falls with Assembly confidence
Individual	Article 164(1) pleasure through CM-led practice	One minister may be removed
Legal	Ordinary constitutional/statutory law	Ministers remain legally accountable

CLOSING RECALL FLOW - STATE COUNCIL OF MINISTERS UNDER ARTICLES 163-164

START / CONCEPT: State Council of Ministers under Articles 163-164

|

v

EXACT TERMS: Article 163 · Article 164 · collective responsibility · ministerial advice · six-month rule

|

v

MECHANISM / ARGUMENT: The Governor appoints ministers on CM advice; the Council governs together and survives only while it retains Assembly confidence.

|

v

CONSEQUENCE / CONTRAST: Collective responsibility unifies policy and enables legislative accountability.

|

v

UPSC TRAP / ANSWER-USE: The Legislative Council cannot remove the ministry, and Governor pleasure over ministers is mediated by the CM and confidence system.

|

v

ANSWER-GRABBING FORMULATION: The Council converts electoral confidence into coordinated executive action under a Chief Minister.

SESSION 21 - MINISTRY SIZE, DEFECTOR BAR, RANKS AND TRIBAL WELFARE MINISTER

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution caps State ministries, bars specified defectors and requires a Tribal Welfare Minister in named States.

Technical definition: Articles 164(1A), 164(1B) and the Article 164 proviso impose a 15-percent Assembly-based ceiling, minimum twelve, defector disqualification and the Chhattisgarh-Jharkhand-Madhya Pradesh-Odisha requirement.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The 91st Amendment disciplines ministry size and rewards, while the Tribal Welfare proviso is a separate constitutional obligation.

MUST-WRITE KEYWORDS

- **91st Amendment**
- **15 percent**
- **minimum twelve**
- **defector bar**
- **Tribal Welfare Minister**

How to use them: Frame the answer through 91st Amendment; define 15 percent, connect minimum twelve with defector bar to explain the mechanism, and use Tribal Welfare Minister for the decisive comparison or qualification.

Visual 38 - 91st Amendment formula

Maximum State ministry
= 15% of total Legislative Assembly membership

Minimum State ministry
= 12

Count includes
= Chief Minister + all ministers

Base does NOT include
= combined strength of Assembly and Council

- [FACT] Article 164(1A), inserted by the 91st Amendment, caps the total number of ministers including the CM at **15% of the total membership of the Legislative Assembly.**
- [FACT] The constitutional minimum is **12.**

- [FACT] The base is Assembly membership, not both Houses.
- [FACT] Article 164(1B) bars a member disqualified under the specified Tenth Schedule ground from ministerial appointment for the constitutional period until term-end or earlier re-election as provided.
- [ANALYSIS] The cap reduces jumbo ministries and patronage; the office bar attacks "defect and receive a ministry" incentives.

Visual 39 - Conventional ministerial ranks

Rank	Typical role	Constitutional caution
Cabinet Minister	Heads major department; participates in core decisions	"Cabinet" is functional/conventional at State level
Minister of State, independent charge	Heads a department without Cabinet Minister above	Rank details are not exhaustively constitutional
Minister of State, attached	Assists Cabinet Minister	Allocation varies
Deputy Minister	Assists senior minister, where used	Conventional and not mandatory

Tribal Welfare Minister

- [FACT] Article 164 requires a minister in charge of tribal welfare in **Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha**.
- [FACT] The minister may additionally be in charge of welfare of Scheduled Castes and backward classes or other work.
- [FACT] Bihar was removed from this textual list by the 94th Amendment.

Visual 40 - Four-State recall

Tribal Welfare Minister rule

Chhattisgarh - Jharkhand - Madhya Pradesh - Odisha

Recall: CJMO

CLOSING RECALL FLOW - MINISTRY SIZE, DEFECTOR BAR, RANKS AND TRIBAL WELFARE MINISTER

START / CONCEPT: Ministry size, defector bar, ranks and Tribal Welfare Minister

|

v

EXACT TERMS: 91st Amendment • 15 percent • minimum twelve • defector bar • Tribal Welfare Minister

|

v

MECHANISM / ARGUMENT: Calculate the cap from Assembly strength, apply the floor and test Tenth Schedule disqualification before appointment.

|

v

CONSEQUENCE / CONTRAST: The rules limit patronage and preserve specified tribal representation in executive government.

|

v

UPSC TRAP / ANSWER-USE: The cap is not based on both Houses, and Bihar is no longer in the Tribal Welfare Minister proviso.

|

v

ANSWER-GRABBING FORMULATION: The 91st Amendment disciplines ministry size and rewards, while the Tribal Welfare proviso is a separate constitutional obligation.

SESSION 22 - ARTICLE 165 ADVOCATE GENERAL AND ARTICLE 166 STATE BUSINESS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Advocate General advises the State government, while Article 166 structures formal executive business.

Technical definition: Article 165 requires High Court-judge qualifications for the State law officer; Article 166 authenticates orders and permits Governor-made business-allocation rules.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 165 Advocate General advice and Article 166 State business rules supply the legal and administrative form of responsible government.

MUST-WRITE KEYWORDS

- **Article 165**
- **Advocate General**
- **Article 166**
- **authentication**
- **business rules**

How to use them: Frame the answer through Article 165; define Advocate General, connect Article 166 with authentication to explain the mechanism, and use business rules for the decisive comparison or qualification.

Visual 41 - Legal advice and executive form

Article	Institution/rule	Function
165	Advocate General	Advises State government; performs assigned legal duties
166(1)	Name clause	Executive action expressed in Governor's name
166(2)	Authentication	Rules authenticate orders/instruments
166(3)	Business rules	Governor makes rules for convenient transaction/allocation on advice

- [FACT] The Governor appoints as Advocate General a person qualified to be appointed a High Court judge.
- [FACT] The Advocate General holds office during the Governor's pleasure and receives remuneration determined by the Governor.
- [FACT] Article 166's "Governor's name" is a constitutional form; it does not convert every departmental decision into the Governor's personal decision.
- [FACT] Properly authenticated orders cannot be challenged merely on the ground that they were not personally made by the Governor.
- [FACT] Business rules allocate work among ministers and organise decision-making, except constitutionally discretionary business.
- [ANALYSIS] Article 166 translates political responsibility into administratively traceable State action.

CLOSING RECALL FLOW - ARTICLE 165 ADVOCATE GENERAL AND ARTICLE 166 STATE BUSINESS

START / CONCEPT: Article 165 Advocate General and Article 166 State business

↓

EXACT TERMS: Article 165 · Advocate General · Article 166 · authentication · business rules

↓

MECHANISM / ARGUMENT: The Governor appoints the qualified law officer and formally makes rules allocating and transacting government business.

↓

CONSEQUENCE / CONTRAST: These provisions secure lawful advice, valid form and coordinated administration.

↓

UPSC TRAP / ANSWER-USE: Authentication protects an order's formal validity; it does not prove that the Governor personally decided the policy.

↓

ANSWER-GRABBING FORMULATION: Article 165 Advocate General advice and Article 166 State business rules supply the legal and administrative form of responsible government.

SESSION 23 - PRESIDENT AND GOVERNOR: SIMILARITIES THAT MUST NOT ERASE DIFFERENCES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: President and Governor are constitutional heads in parliamentary systems but their texts and powers are not identical.

Technical definition: Articles 74 and 163 differ on express advice language; Articles 72 and 161 differ on clemency; Governors have Article 200 reservation and State-specific responsibilities.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Comparison should use identical parameters rather than treating the Governor as a miniature President.

MUST-WRITE KEYWORDS

- President
- Governor
- Article 74
- Article 163
- clemency

How to use them: Frame the answer through President; define Governor, connect Article 74 with Article 163 to explain the mechanism, and use clemency for the decisive comparison or qualification.

Visual 42 - Parallel and divergence

Point	President	Governor
Appointment/election	Indirectly elected	Appointed by President
Formal executive	Union	State
Advice article	74	163
Express general discretion formula	No Article 163 equivalent	Article 163 carve-out
Ministry responsibility	Lok Sabha	Legislative Assembly
Ordinance	Article 123	Article 213
Bill assent	Article 111	Article 200
Reserved State Bill	Article 201 decision-maker	Article 200 reservation gateway

Point	President	Governor
Clemency	Article 72, broader	Article 161, narrower
Removal	Impeachment	President's pleasure

- [ANALYSIS] The offices share parliamentary-head logic but not identical appointment, tenure, discretion or clemency fields.
- [LIMIT] Never reason: "President is bound, therefore Governor is always identically bound." The better formula is: advice is the default for both; Governor has a narrow constitutionally recognised discretionary field.

CLOSING RECALL FLOW - PRESIDENT AND GOVERNOR: SIMILARITIES THAT MUST NOT ERASE DIFFERENCES

START / CONCEPT: President and Governor: similarities that must not erase differences

|

v

EXACT TERMS: President · Governor · Article 74 · Article 163 · clemency

|

v

MECHANISM / ARGUMENT: Compare appointment, tenure, advice, discretion, veto, ordinance, pardon, immunity and removal one axis at a time.

|

v

CONSEQUENCE / CONTRAST: The method reveals common responsible-government logic and distinct federal functions.

|

v

UPSC TRAP / ANSWER-USE: The President can pardon a death sentence and court-martial punishment; the Governor cannot exercise those same limbs.

|

v

ANSWER-GRABBING FORMULATION: Comparison should use identical parameters rather than treating the Governor as a miniature President.

SESSION 24 - DUAL ROLE, FEDERAL FRICTION AND INSTITUTIONAL INCENTIVES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Union appointment and State-facing powers place the Governor at a recurring federal junction.

Technical definition: Articles 155-156 create structural Union linkage, while Articles 163, 200 and 356 place the office inside sensitive State government decisions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The office can bridge constitutional communication, yet its incentive structure can create partisan perception.

MUST-WRITE KEYWORDS

- Union appointment
- pleasure tenure
- federal friction
- constitutional head
- neutrality

How to use them: Frame the answer through Union appointment; define pleasure tenure, connect federal friction with constitutional head to explain the mechanism, and use neutrality for the decisive comparison or qualification.

Visual 43 - Friction mechanism

Union appointment: Article 155
 +
 Pleasure tenure: Article 156
 +
 State constitutional headship: Articles 154/163
 +
 Discretion-sensitive powers: 200/356/hung House
 |
 v
 Perceived divided loyalty
 |
 v
 Assent delay / formation dispute / Chancellor conflict / 356 report
 |
 v
 Federal litigation and political distrust

- [ANALYSIS] The Governor is simultaneously the State's constitutional head and an office filled and tenured through the Union. That design creates a recurring neutrality problem.
- [ANALYSIS] Friction intensifies where Union and State governments are politically opposed because discretionary moments become high-stakes federal gates.
- [LIMIT] Political alignment is explanatory, not proof of illegality in any specific case.
- [ANALYSIS] Statutory Chancellor disputes add a second hat to a constitutional office; clarity improves when State law precisely separates statutory university functions from Article 163 government.

Arguments for retaining the office

- [ANALYSIS] Ensures continuity of constitutional form.
- [ANALYSIS] Provides a neutral facilitator in a genuinely hung Assembly.
- [ANALYSIS] Supplies information and warning before constitutional breakdown.
- [ANALYSIS] Connects State legislation to presidential scrutiny in constitutionally sensitive cases.

Criticisms

- [ANALYSIS] Pleasure tenure may incentivise responsiveness to the Union.
- [ANALYSIS] Assent and formation powers can delay or alter elected-government choices.
- [ANALYSIS] Chancellor roles can create parallel administrative authority.
- [ANALYSIS] Conventions remain weakly enforceable until litigation occurs.

Visual 44 - Critique and reply

Critique	Institutional reply	Residual problem
Agent of Centre	<i>Shamsher Singh, Bommai</i> , judicial review	Review is episodic and after conflict
Partisan floor test	<i>Subhash Desai</i> objective-material test	Political facts remain contested
Pocket veto on Bills	2025 limited mandamus	No rigid timeline
Arbitrary 356 report	Parliament + <i>Bommai</i>	Information asymmetry
Chancellor overreach	Statutory redesign	State-specific litigation

CLOSING RECALL FLOW - DUAL ROLE, FEDERAL FRICTION AND INSTITUTIONAL INCENTIVES

START / CONCEPT: Dual role, federal friction and institutional incentives

↓

EXACT TERMS: Union appointment · pleasure tenure · federal friction · constitutional head · neutrality

↓

MECHANISM / ARGUMENT: Appointment and tenure shape incentives when the Governor handles formation, assent, university statutes or breakdown reports.

↓

CONSEQUENCE / CONTRAST: Neutral conduct can stabilise federal relations; partisan use can delay elected State action and erode trust.

↓

UPSC TRAP / ANSWER-USE: Calling the Governor the Centre's representative is analytical shorthand, not legal authority to follow party directions.

↓

ANSWER-GRABBING FORMULATION: The office can bridge constitutional communication, yet its incentive structure can create partisan perception.

SESSION 25 - SARKARIA, PUNCHHI AND NCRWC REFORM AGENDA

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Major commissions propose neutral selection, tenure protection and disciplined use of gubernatorial powers.

Technical definition: Sarkaria, NCRWC and Punchhi recommendations address eminent non-partisan appointment, CM consultation, removal, floor tests, assent, Article 356 and post-tenure conduct.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The reform consensus seeks accountable neutrality without abolishing constitutional flexibility.

MUST-WRITE KEYWORDS

- Sarkaria Commission
- Punchhi Commission
- NCRWC
- tenure reform
- CM consultation

How to use them: Frame the answer through Sarkaria Commission; define Punchhi Commission, connect NCRWC with tenure reform to explain the mechanism, and use CM consultation for the decisive comparison or qualification.

Visual 45 - Recommendation matrix

Body	Main Governor-related proposal in sourced Core	Status
Sarkaria Commission	Eminent outsider; non-partisan; consult CM; removal only for compelling reasons; Article 356 last resort	Proposal/convention, not law
NCRWC/Venkatachaliah	Appointment committee including PM, Home Minister, Lok Sabha Speaker and State CM; tenure disturbed only rarely	Proposal, not law
Punchhi Commission	Fixed tenure; State-legislature-linked removal/impeachment-type process; clearer modern discretion norms	Proposal, not law

- [ANALYSIS] The commissions converge on three aims: neutral selection, tenure security and objective handling of crisis powers.
- [LIMIT] They differ in institutional detail. Do not merge them into one enacted code.
- [FACT] The constitutional pleasure doctrine and presidential appointment remain unchanged.

Visual 46 - Reform from cause to cure

Partisan appointment risk -> consultative/plural selection
Pleasure insecurity -> protected or reasoned tenure
Hung-House dispute -> published neutral criteria + prompt floor test
Assent delay -> reasoned tracking + constitutional expedition
Article 356 misuse -> warning, floor test, last resort, review
Chancellor conflict -> precise State statutory allocation

CLOSING RECALL FLOW - SARKARIA, PUNCHHI AND NCRWC REFORM AGENDA

START / CONCEPT: Sarkaria, Punchhi and NCRWC reform agenda
|
v
EXACT TERMS: Sarkaria Commission · Punchhi Commission · NCRWC · tenure reform · CM consultation
|
v
MECHANISM / ARGUMENT: Convert recurring failures into appointment, tenure, reason-giving and House-centred procedural safeguards.
|
v
CONSEQUENCE / CONTRAST: Implementation could reduce partisan incentives while preserving emergency and formation functions.
|
v
UPSC TRAP / ANSWER-USE: Commission recommendations are persuasive proposals, not current constitutional law.
|
v
ANSWER-GRABBING FORMULATION: The reform consensus seeks accountable neutrality without abolishing constitutional flexibility.

SESSION 26 - ANSWER WRITING: CLAIM, EVIDENCE, ANALYSIS, QUALIFICATION, VERDICT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Governor answer earns marks by connecting constitutional text to institutional mechanism, case law, limits and reform.

Technical definition: The recommended structure scales a clear thesis through Article, case proposition, federal consequence, counterpoint and graded verdict.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Governor answer writing should move from a claim through constitutional evidence and analysis to a qualification and reasoned verdict.

MUST-WRITE KEYWORDS

- claim
- constitutional evidence
- case proposition
- qualification
- verdict

How to use them: Frame the answer through claim; define constitutional evidence, connect case proposition with qualification to explain the mechanism, and use verdict for the decisive comparison or qualification.

Visual 47 - Universal Polity answer spine

CLAIM
 Direct answer to directive
 |
 NAMED EVIDENCE
 Article + case + commission/current control
 |
 ANALYSIS
 What the evidence proves and through what mechanism
 |
 QUALIFICATION
 Textual limit, factual variation, counter-case or status caution
 |
 VERDICT
 Graded answer, not slogan

Directive fidelity

Directive	Required operation
Discuss	Cover main dimensions and arrive at reasoned synthesis
Examine	Test proposition against law and evidence
Critically examine	Build case, counter-case, limitations and graded verdict
Analyse	Break into mechanisms, causes and consequences
Comment	Take a defensible position supported by evidence
Compare	Use common parameters; do not write two disconnected notes
Suggest	Link each reform to a diagnosed defect

Visual 48 - Mark-scaled evidence load

Marks	Structure	Normal named evidence load
10 / 150 words	Thesis -> 2-3 dimensions -> qualification -> verdict	2-3 precise units
15 / 250 words	Thesis -> constitutional map -> cases/current control -> counterpoint -> verdict	4-6 precise units
20 / 250 words	Design -> mechanism -> practice -> cases -> reform -> graded verdict	5-8 precise units

Ready-made evidence chains

- Discretion:** Article 163 -> *Shamsher Singh* default -> *Nabam Rebia* narrow field -> *Subhash Desai* objective material -> constitutional-head verdict.
- Assent:** Article 200 options -> mandatory HC reservation -> Article 201 distinction -> April/November 2025 control -> no pocket veto and no deemed assent.
- Formation:** Article 164 appointment -> objective support -> *Bomma* floor -> *Rameshwar Prasad* anti-apprehension -> *Subhash Desai* anti-factional test.
- Pleasure:** Articles 155-156 -> Union appointment and insecurity -> commission recommendations -> proposals-not-law qualification.
- Ordinance:** Article 213 urgency -> laying/six weeks -> *Wadhwa* -> *Krishna Kumar Singh* -> emergency bridge, not bypass.
- CM/CoM:** Articles 163-164 -> Assembly confidence -> Article 167 -> 91st Amendment cap -> real-executive verdict.

CLOSING RECALL FLOW - ANSWER WRITING: CLAIM, EVIDENCE, ANALYSIS, QUALIFICATION, VERDICT

START / CONCEPT: Answer writing: claim, evidence, analysis, qualification, verdict

↓

EXACT TERMS: claim · constitutional evidence · case proposition · qualification · verdict

↓

MECHANISM / ARGUMENT: Identify the directive, select the exact power route, attach named authority and finish with a matched reform or constitutional limit.

↓

CONSEQUENCE / CONTRAST: This structure converts descriptive knowledge into balanced GS-II analysis.

↓

UPSC TRAP / ANSWER-USE: Do not list every power or case when the question tests only assent, formation, pleasure or ordinance doctrine.

↓

ANSWER-GRABBING FORMULATION: Governor answer writing should move from a claim through constitutional evidence and analysis to a qualification and reasoned verdict.

BASIC MCQS / REMEDIATION

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Mode of selection

Which statement correctly describes the constitutional selection of a State Governor?

A. The President appoints the Governor by warrant. B. An electoral college of State legislators and MPs elects the Governor. C. The Chief Minister nominates and the High Court confirms the Governor. D. The State Assembly elects the Governor by proportional representation.

Answer: A.

Explanation: [FACT] Article 155 provides presidential appointment. There is no gubernatorial electoral college.

OM2. Common Governor

The Constitution permits:

A. one State to have two Governors simultaneously with equal authority. B. the same person to be appointed Governor of two or more States. C. a Chief Minister to serve automatically as Governor of another State. D. Parliament to merge two States merely by appointing a common Governor.

Answer: B.

Explanation: [FACT] The proviso to Article 153 permits a common incumbent. [LIMIT] The States and their ministries remain constitutionally distinct.

OM3. Tenure

Which formulation is most accurate?

A. A Governor can neither be transferred nor reappointed. B. The Governor serves until removed by the State Assembly. C. The five-year term is subject to the President's pleasure, and the Governor continues until a successor enters office. D. The Governor has an unqualified five-year tenure.

Answer: C.

Explanation: [FACT] Article 156 combines pleasure, five years and continuity. Five years is not a fixed enforceable lease.

OM4. Oath

Who ordinarily administers the Governor's oath?

A. Chief Minister. B. President of India. C. Speaker of the Legislative Assembly. D. Chief Justice of the High Court exercising jurisdiction, or the available senior judge in the Chief Justice's absence.

Answer: D.

Explanation: [FACT] Article 159 supplies the High Court-based oath arrangement.

OM5. Article 361

Which is protected during a Governor's term?

A. No criminal proceeding may be instituted or continued against the Governor. B. No civil claim can ever be brought for personal acts. C. Every State-government action becomes immune from review. D. The Governor acquires legislative speech privilege as a House member.

Answer: A.

Explanation: [FACT] Article 361 supplies personal criminal-process and arrest protections. [LIMIT] It does not erase review of governmental action.

OM6. Legislative privilege

Why does Article 194 speech immunity not automatically attach to the Governor?

A. Article 361 repeals Article 194 whenever the Governor addresses the House. B. The Governor is a component under Article 168 but is not a member of either House. C. The Governor is outside the State legislature for all purposes. D. Article 194 applies only to Parliament.

Answer: B.

Explanation: [FACT] Membership, not mere inclusion in the legislative composition, controls member privilege.

OM7. Nomination

In a bicameral State, the Governor nominates:

A. one-third of the Legislative Council. B. all members representing graduates and teachers. C. one-sixth of the Legislative Council. D. one-sixth of the Legislative Assembly.

Answer: C.

Explanation: [FACT] Article 171 reserves one-sixth of the Council for gubernatorial nominees with specified knowledge/experience.

OM8. Article 166

Which statement is correct?

A. Every order in the Governor's name must have been personally decided by the Governor. B. Business rules are framed by the State Assembly alone. C. Article 166 makes the Governor the political head of every department. D. State executive action is expressed in the Governor's name and authenticated under rules, without implying personal decision-making.

Answer: D.

Explanation: [FACT] Article 166 provides form, authentication and allocation/transaction rules for responsible government.

OM9. Article 163 default

The constitutional default is that the Governor:

A. acts on the aid and advice of the CM-led Council except in a narrow recognised discretionary field. B. may reject every advised decision without reasons. C. is bound only by directions of the Union Home Ministry. D. acts independently whenever political controversy exists.

Answer: A.

Explanation: [FACT] Article 163 and *Shamsher Singh* establish advice as the norm. Discretion is the exception.

OM10. Discretion

Which is the best example of constitutionally recognised gubernatorial discretion?

A. Selecting individual ministers contrary to the CM's advice. B. Reserving an appropriate State Bill for the President under Article 200. C. deciding which faction is the real political party. D. rewriting the State budget.

Answer: B.

Explanation: [FACT] Reservation is a recognised discretionary field. Party identity and ordinary policy belong to other institutions.

OM11. Shamsher Singh

The main proposition of *Shamsher Singh* for this topic is:

A. Article 356 is wholly non-justiciable. B. every Governor must be elected. C. the President and Governor are constitutional heads ordinarily acting on ministerial advice. D. the Governor may pardon a court-martial sentence.

Answer: C.

Explanation: [FACT] The case prevents formal vesting from becoming personal executive rule.

OM12. S.R. Bommai

Which proposition is most closely associated with *S.R. Bommai*?

A. A Legislative Council must exist in every State. B. Article 200 creates automatic deemed assent. C. A common Governor is unconstitutional. D. Article 356 is reviewable and disputed majority should ordinarily be tested on the House floor.

Answer: D.

Explanation: [FACT] *Bommai* constitutionalised review and floor-test discipline and recognised federalism as Basic Structure.

OM13. Rameshwar Prasad

The case principally warns that:

A. apprehension of future horse-trading cannot replace objective constitutional material for dissolution. B. courts cannot review an Assembly dissolution. C. the Governor must always invite the single largest party. D. every post-election coalition is illegal.

Answer: A.

Explanation: [FACT] The Bihar dissolution based on anticipated conduct was held unconstitutional/mala fide.

OM14. Nabam Rebia

For gubernatorial power, *Nabam Rebia* supports which rule?

A. every Speaker-removal question is finally settled. B. summoning, prorogation and messages are normally advice-bound; discretion cannot be self-expanded. C. the Governor may adjudicate Tenth Schedule petitions. D. Article 174 is wholly personal to the Governor.

Answer: B.

Explanation: [FACT] The case narrows Article 163 discretion. [CURRENT/LIMIT] The Speaker-removal issue was referred in *Subhash Desai* and is treated as unresolved here.

OM15. Subhash Desai

Which statement is correct?

A. The Court disqualified the relevant legislators itself. B. The Court restored the previous Maharashtra government. C. A floor test needs objective material indicating possible loss of House confidence; intra-party dissent alone is insufficient. D. The Governor may call a floor test to decide internal party leadership.

Answer: C.

Explanation: [FACT] The objective-material rule is central. [LIMIT] No restoration followed because the CM resigned without facing the test.

OM16. Non-member CM

A person appointed Chief Minister without being a member of the State legislature must ordinarily secure membership within:

A. one year. B. the remainder of the Assembly term. C. three months. D. six consecutive months.

Answer: D.

Explanation: [FACT] Article 164(4) supplies the six-month rule. [LIMIT] It cannot cure an underlying disqualification.

OM17. Floor-test trigger

Which is the best constitutional basis for requiring a floor test?

A. Objective material creating a genuine doubt about Assembly confidence. B. Any newspaper report of party disagreement. C. A Governor's disagreement with policy. D. A request from the Union executive without State-level material.

Answer: A.

Explanation: [FACT] *Subhash Desai* requires objective material; *Bommai* identifies the floor as the forum.

OM18. Dismissal

When may dismissal of a State ministry become constitutionally defensible?

A. When a Legislative Council criticises the ministry. B. After demonstrable loss of confidence where the ministry refuses to resign. C. Immediately after a party faction changes its leader. D. Whenever the Governor dislikes a Bill.

Answer: B.

Explanation: [ANALYSIS] Pleasure does not displace Assembly confidence. Dismissal is exceptional after loss is properly established.

OM19. Caretaker government

Which statement is most accurate?

A. The Constitution codifies a complete caretaker-government chapter. B. Dissolution leaves the State without any Council of Ministers. C. Caretaker continuity rests mainly on convention, with restraint on avoidable irreversible action. D. A caretaker ministry cannot perform urgent administration.

Answer: C.

Explanation: [ANALYSIS] Continuity is necessary, while restraint preserves electoral fairness and successor choice.

OM20. Article 356 input

Which statement is correct?

A. A Governor's report automatically dissolves the Assembly. B. Courts cannot examine the material. C. Article 356 can be used only on a Governor's report. D. The President may act on a Governor's report or otherwise, but the action remains subject to constitutional controls.

Answer: D.

Explanation: [FACT] "Report or otherwise" is textual. Parliament and *Bommai* review remain.

OM21. Return of Bill

Under Article 200, the Governor may return for reconsideration:

A. a non-Money Bill. B. a constitutional amendment passed by Parliament. C. only a Money Bill. D. a Finance Commission recommendation.

Answer: A.

Explanation: [FACT] The first proviso's return mechanism excludes Money Bills.

OM22. Mandatory reservation

Reservation is constitutionally mandatory where the Governor considers that a Bill:

A. reduces a minister's salary. B. so derogates from High Court powers as to endanger its constitutional position. C. creates a Legislative Council. D. is opposed by the Union ruling party.

Answer: B.

Explanation: [FACT] The second proviso to Article 200 protects the High Court's constitutional position.

OM23. Article 201

After a reserved non-Money Bill is returned and repassed by the State legislature:

A. the Governor alone gives final assent without presidential consideration. B. it automatically becomes law. C. the President is not subject to an Article 200-style obligation to assent. D. the Supreme Court must certify it.

Answer: C.

Explanation: [FACT] Article 201 does not reproduce the direct-return obligation applicable to the Governor.

OM24. Current assent doctrine

As controlled to 28 August 2026, which statement is most accurate?

A. Courts may choose whether the Governor should assent or reserve. B. The November 2025 opinion bindingly overruled every part of the April case. C. Every Bill is deemed assented after three months. D. No court-created rigid timeline or automatic deemed assent applies, but prolonged unexplained indefinite inaction may attract limited mandamus.

Answer: D.

Explanation: [CURRENT] This is the later narrow controlling position. [LIMIT] The opinion is advisory and non-binding.

OM25. Ordinance session condition

Which statement is correct?

A. Article 213 is unavailable when the relevant legislature is fully in session under the constitutional session rule. B. A Governor may issue an ordinance on any Union List subject. C. An ordinance never needs to be laid before the legislature. D. An ordinance may be issued only after an Assembly rejects the same Bill.

Answer: A.

Explanation: [FACT] The power bridges a session gap and remains limited by legislative competence and laying.

OM26. D.C. Wadhwa

Routine serial re-promulgation was described as:

A. an exercise of legislative privilege. B. a fraud on the Constitution. C. a non-justiciable political question. D. a constitutional convention.

Answer: B.

Explanation: [FACT] The case condemns executive repetition used to avoid the legislature.

OM27. Krishna Kumar Singh

Which proposition is correct?

A. Laying an ordinance is optional. B. Every lapsed ordinance creates permanent rights. C. Laying is mandatory, re-promulgation subverts legislative supremacy and satisfaction is reviewable at constitutional limits. D. Only a three-judge Bench decided the case unanimously.

Answer: C.

Explanation: [FACT] The seven-judge, 5:2 decision strengthened legislative control and rejected automatic enduring effects.

OM28. Death sentence and Article 161

The Governor:

A. may pardon a death sentence and a court-martial sentence. B. has no clemency role in death cases. C. may deal with court-martial but not State offences. D. cannot pardon a death sentence but may suspend, remit or commute it.

Answer: D.

Explanation: [FACT] This is the precise Article 161-Article 72 distinction.

OM29. Article 167

Which is an express duty of the Chief Minister?

A. Communicate Council decisions and furnish information sought by the Governor. B. countersign every judicial order. C. appoint the Advocate General personally. D. Obtain Legislative Council confidence every month.

Answer: A.

Explanation: [FACT] Article 167 also permits the Governor to require collectivisation of an individual minister's unconsidered decision.

OM30. Collective responsibility

The State Council of Ministers is collectively responsible to:

A. the Legislative Council. B. the Legislative Assembly. C. both Houses in equal measure. D. the Governor personally.

Answer: B.

Explanation: [FACT] Article 164(2) locates confidence in the popularly elected Assembly.

OM31. Ministry-cap base

The maximum State ministry under Article 164(1A) is calculated with reference to:

A. combined membership of both State Houses. B. elected Assembly members excluding vacancies. C. total membership of the Legislative Assembly. D. a number fixed by the Governor.

Answer: C.

Explanation: [FACT] The cap is 15% of total Assembly membership and includes the CM.

OM32. Minimum ministry

The constitutional minimum number of State ministers is:

A. 10. B. 6. C. 8. D. 12.

Answer: D.

Explanation: [FACT] State ministries have a minimum of 12; the Union has no equivalent constitutional minimum.

OM33. Tribal Welfare Minister

Which set is covered by the Article 164 tribal-welfare-minister rule?

A. Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha. B. Rajasthan, Gujarat, Maharashtra and Goa. C. All States having Scheduled Areas. D. Bihar, Assam, Meghalaya and Nagaland.

Answer: A.

Explanation: [FACT] Recall CJMO. [LIMIT] The rule is not a general list of every State with tribal population or Scheduled Areas.

OM34. University Chancellor

Which statement is accurate?

A. Article 153 makes every Governor Chancellor of all universities. B. A Chancellor role exists only where the relevant State statute creates it. C. The role is part of Article 161. D. Parliament alone may define every State university Chancellor.

Answer: B.

Explanation: [FACT] The Chancellor hat is statutory, not inherent in the Constitution.

OM35. Reform commissions

How should Sarkaria, Punchhi and NCRWC recommendations be used?

A. As proof that every Governor must be elected. B. As binding constitutional amendments already in force. C. As reform proposals supporting neutral appointment, tenure security and bounded discretion. D. As Supreme Court orders that remove Article 156.

Answer: C.

Explanation: [LIMIT] They are persuasive reform evidence, not law.

OM36. Advice-binding trap

Which is the most precise statement?

A. The Governor may ignore advice in every legislative matter. B. Article 163 gives unlimited personal discretion. C. Ministerial advice is expressly binding on the Governor in exactly the same words as Article 74. D. Advice is not expressed in the same binding terms as for the President, but constitutional practice and case law make advice the norm and discretion narrow.

Answer: D.

Explanation: [FACT] The textual difference must be preserved without converting it into general discretion.

Remedial MCQs - strict A -> B -> A -> D rotation

R1. Age trap

The minimum age for appointment as Governor is:

A. 35 years. B. 30 years. C. 40 years. D. 25 years.

Answer: A.

Remedy: Link Article 157 with the fixed number 35.

R2. Nomination trap

The Governor's one-sixth nomination applies to:

A. Inter-State Council. B. Legislative Council. C. Legislative Assembly. D. Rajya Sabha.

Answer: B.

Remedy: Governor -> Council; President -> Rajya Sabha nomination under a different provision.

R3. Tenure trap

Which statement is correct?

A. Five years cannot be shortened. B. Transfer is constitutionally prohibited. C. Five years is subject to President's pleasure. D. The Assembly removes by impeachment.

Answer: C.

Remedy: Read Article 156 as pleasure first, five-year outer term second.

R4. Immunity trap

During the term:

A. personal civil claims need no notice. B. all State action is immune. C. Article 194 makes the Governor a House member. D. criminal proceedings cannot be instituted or continued against the Governor.

Answer: D.

Remedy: Article 361 protects the office-holder; it does not erase review of government action.

R5. Return trap

The Governor's Article 200 return power applies to:

A. a non-Money Bill. B. a Money Bill only. C. a Union Budget. D. a constitutional-amendment Bill.

Answer: A.

Remedy: Return = non-Money Bill; reservation is a separate route.

R6. Reserved Bill trap

After re-passage of a Bill returned under Article 201:

A. the Governor becomes final decision-maker. B. the President is not constitutionally compelled to assent. C. the Bill becomes a Money Bill. D. assent is automatically deemed.

Answer: B.

Remedy: Do not import Article 200's direct-return language into Article 201.

R7. 2025 doctrine trap

Which current statement is accurate?

A. Courts must impose a three-month clock. B. April 2025 has no continuing relevance because it was formally overruled. C. No rigid judicial clock/deemed assent, but prolonged unexplained inaction may receive limited review. D. Inaction is entirely non-justiciable.

Answer: C.

Remedy: Later controlling position narrowly; advisory, not an overruling.

R8. Floor-test trap

A Governor should not use a floor test:

A. where objective numbers create genuine doubt. B. after a ministry volunteers to prove confidence. C. after an express coalition withdrawal. D. merely to resolve an intra-party leadership dispute.

Answer: D.

Remedy: *Subhash Desai* separates House confidence from party faction.

R9. Non-member trap

A non-member minister ordinarily ceases after:

A. six consecutive months without entering the legislature. B. one Assembly session. C. three months. D. one year.

Answer: A.

Remedy: Article 164(4) mirrors the Union six-month rule.

R10. Cap trap

The 15% State ministry cap uses:

A. State population. B. total Legislative Assembly membership. C. elected Assembly members only. D. both Houses together.

Answer: B.

Remedy: Assembly is both the cap base and the confidence House.

R11. Clemency trap

Which statement is correct?

A. Governor may pardon court-martial sentences. B. Governor may pardon every death sentence. C. Governor may suspend/remit/commute a death sentence but cannot pardon it. D. Article 161 is wider than Article 72.

Answer: C.

Remedy: Article 72 is broader on court-martial and death pardon.

R12. Referred-question trap

According to the controlling Core, the *Nabam Rebia* issue concerning a Speaker facing a removal notice:

A. was decided by the Governor. B. was abolished by constitutional amendment. C. was finally affirmed without qualification in *Subhash Desai*. D. was referred to a larger seven-judge Bench and remains unresolved.

Answer: D.

Remedy: Separate *Nabam Rebia*'s Governor-advice proposition from the referred Speaker-removal issue.

PYQS AND ANSWER PRACTICE

Verified routed PYQs

PYQ 1 - UPSC GS-II 2022, Q12 - direct owner

Verified neutral demand: Discuss the Governor's legislative powers and the legality/constitutional implications of re-promulgating ordinances. **15 marks | 250 words**

Demand decoding

- "Discuss" requires the legislative-power map plus focused treatment of ordinance re-promulgation.
- The answer must distinguish valid ordinance power from its serial abuse.
- The current assent doctrine is a value addition, not a substitute for Article 213.

Model answer

Claim: [FACT] The Governor is a component of the State legislature under Article 168, but as a constitutional head ordinarily exercises legislative powers on ministerial advice. These powers preserve continuity and scrutiny; they become problematic when used to bypass the elected House.

Named evidence and analysis: Under Articles 174-176, the Governor summons/prorogues the legislature, may dissolve the Assembly, sends messages and delivers the special address. Article 171 permits nomination of one-sixth of a Legislative Council. Article 200 permits assent, withholding, return of a non-Money Bill or reservation for the President; the High Court-protection proviso makes reservation mandatory in its field. Article 201 then governs presidential action. [CURRENT] The 20 November 2025 Article 143 opinion rejects rigid judicial assent timelines and automatic deemed assent, while allowing limited mandamus against prolonged unexplained inaction.

Article 213 permits an ordinance when the session condition is met and immediate action is necessary. It has Act-like force but must be laid and ceases six weeks after reassembly. *D.C. Wadhwa* called routine re-promulgation a "fraud on the Constitution." *Krishna Kumar Singh* made laying mandatory, reaffirmed review and rejected automatic survival of every lapsed ordinance's effects.

Qualification and verdict: [LIMIT] Ordinances remain legitimate emergency bridges; occasional fresh circumstances may require new law. But serial reissue to avoid legislative scrutiny subverts representative government. The Governor's legislative legitimacy therefore lies in constitutional facilitation, not executive law-making by repetition.

Examiner comment: Do not write only on Article 200. The question's second half requires Article 213, six-week control and both ordinance cases.

Evidence chain: Article 168 -> Articles 174-176/171/200-201 -> Article 213 -> *Wadhwa* -> *Krishna Kumar Singh* -> current 2025 assent qualification.

Why this earns marks: It answers both limbs, uses more than six precise constitutional/case anchors, explains what abuse does and ends with a qualified verdict.

How to improve this answer: In 250 words separate Article 200 from Article 213, retain the six-week rule and both re-promulgation cases, and use the 2025 assent opinion only as a dated qualification.

PYQ 2 - UPSC GS-II 2020, Q3 - cross-owned federalism application

Question: How far have cooperation, competition and confrontation shaped the nature of federation in India? **10 marks | 150 words | Primary owner: Polity 12; application here: Governor-State friction**

Model answer

Claim: [ANALYSIS] Indian federalism is neither permanently cooperative nor permanently coercive; all three modes operate together.

Named evidence: Cooperation appears in the GST Council, Finance Commission transfers and intergovernmental crisis coordination. Competition appears in State welfare and investment innovation. Confrontation appears in Governor assent disputes, Article 356 reports, CBI consent, fiscal conditions and river conflicts.

Analysis: Governor disputes reveal why institutional design matters: Article 155 creates Union appointment, Article 156 pleasure tenure and Article 200 a gate in State law-making. Yet *S.R. Bommai* protects federalism as Basic Structure and subjects Article 356 to review; the 2025 assent opinion permits limited action against prolonged unexplained delay.

Qualification and verdict: [LIMIT] Conflict is not itself anti-federal; federalism expects disagreement. It becomes destructive when constitutional offices substitute partisan delay for reasoned decision. India is therefore a bargaining federation whose success depends on keeping confrontation institutional, reviewable and negotiable.

Examiner comment: Use the Governor as one application, not as the whole federalism answer.

Evidence chain: GST/Finance Commission -> Articles 155/156/200 -> *Bommai* -> 2025 assent control.

Why this earns marks: It covers all three terms, links a topic-specific example to federal theory and qualifies confrontation.

How to improve this answer: For 150 words keep one example each of cooperation, competition and confrontation, then use Articles 155-156/200 and *Bommai* as the Governor-specific analytical link.

PYQ 3 - UPSC GS-II 2022, Q13 - cross-owned federalism application

Question: While national political parties in India favour centralisation, regional parties favour State autonomy.

Comment. 15 marks | 250 words | Primary owner: Polity 12; application here: Governor reform

Model answer

Claim: [ANALYSIS] The proposition identifies a recurring incentive but overstates ideological permanence. Parties often change federal preferences with their location in power.

Named evidence: A national party controlling the Union may prefer uniform policy, central agencies, conditional schemes and the leverage of Articles 155-156, 200 and 356. Regional parties commonly seek greater tax autonomy, fewer scheme conditions, neutral Governors and restraint in Union intervention. Coalition eras after 1989 increased regional bargaining at the Union.

Analysis: The Governor illustrates the asymmetry. A Union-appointed, pleasure-tenure constitutional head controls sensitive formation, assent and breakdown gateways. Rival-party States therefore perceive delay or crisis intervention as centralisation. Sarkaria, Punchhi and NCRWC proposed neutral selection, consultation and tenure reform precisely to reduce this distrust.

Counter-evidence: National parties demand autonomy when in opposition in States; regional parties may centralise power within their own governments. GST demonstrates acceptance of pooled authority, while *Bommai* prevents either party type from erasing the federal Basic Structure.

Verdict: Party family influences rhetoric, but office, coalition arithmetic and issue-specific interest explain conduct better. Federal trust needs institutions that remain neutral whichever party occupies the Union.

Examiner comment: "Comment" needs a clear judgement; do not merely list national and regional parties.

Evidence chain: Party incentives -> Articles 155/156/200/356 -> coalition era -> commissions -> *Bommai*.

Why this earns marks: It accepts, tests and qualifies the proposition with a Governor-specific mechanism and named reforms.

How to improve this answer: Organise by party incentives, office effects and counter-evidence; retain commission reforms but do not present national or regional party behaviour as ideologically fixed.

PYQ 4 - UPSC GS-II 2023, Q13 - cross-owned emergency application

Question: Account for the legal and political factors responsible for the reduced frequency of Article 356 use since the mid-1990s. **15 marks | 250 words | Primary owner: Polity 14; application here: Governor reports and floor tests**

Model answer

Claim: [FACT] Article 356 declined without textual repeal because law raised the constitutional cost and political federalisation raised the electoral cost of partisan dismissal.

Named legal evidence: *S.R. Bommai* (1994) made proclamations reviewable, required relevant material, prioritised a floor test for majority disputes and permitted restoration after invalid action. *Rameshwar Prasad* (2006) held the Bihar dissolution based on anticipated horse-trading unconstitutional. The Governor's report thus became evidence subject to scrutiny, not an unchallengeable verdict.

Named political evidence: Coalition Union governments often depended on regional parties; strong State parties raised parliamentary and electoral costs. Media, opposition and civil-society scrutiny made partisan removals

reputationally expensive. Sarkaria and Punchhi norms reinforced warning, speaking reports and last-resort use.

Analysis: Legal review changed incentives at Raj Bhavan and the Union; political dependence made misuse threaten government survival.

Qualification and verdict: [LIMIT] Article 356 still contains "report or otherwise," and disputes have not disappeared. Reduced use reflects judicial discipline plus bargaining federalism, not the disappearance of centralising power.

Examiner comment: Separate legal from political causes and identify the Governor's report as an input, not the final constitutional act.

Evidence chain: *Bommai* -> floor test/review/restoration -> *Rameshwar Prasad* -> coalition/regional parties -> commission norms.

Why this earns marks: It directly "accounts for" decline through two causal groups and preserves the textual qualification.

How to improve this answer: Use two labelled causal blocks-legal and political-and preserve the "report or otherwise" qualification; remove generic federalism praise before named evidence.

PYQ 5 - UPSC GS-II 2024, Q13 - cross-owned Centre-State application

Question: What recent changes have occurred in Centre-State relations, and what measures can build trust and strengthen federalism? **15 marks | 250 words | Primary owner: Polity 13; application here: neutral Governor**

Model answer

Claim: [ANALYSIS] Centre-State relations have become more institutionally shared yet more politically contested: GST and Finance Commission rules coexist with disputes over cesses, central agencies, legislation and Governors.

Named evidence: NITI Aayog replaced plan-era allocation architecture; GST pooled indirect-tax authority; Finance Commission transfers remain rules-based. At the same time, Governor assent, statutory Chancellor roles, CBI consent, borrowing conditions and centrally sponsored schemes generate distrust. *Bommai* protects federalism through review; the November 2025 assent opinion rejects deemed assent but permits limited mandamus against prolonged unexplained inaction.

Measures: Convene the Inter-State Council regularly; consult States on Concurrent subjects; use transparent fiscal transfers; follow Sarkaria/Punchhi neutrality norms; publish reasoned gubernatorial decisions; track Bills without inventing deemed assent; use prompt floor tests; clarify Chancellor powers in State statutes; and strengthen neutral dispute processes.

Qualification and verdict: [LIMIT] No single reform eliminates political conflict, and commission proposals are not law. Trust is produced through repeated experience of consultation, reasons, predictable finance and non-partisan constitutional offices.

Examiner comment: Each reform must answer a diagnosed problem. Avoid generic calls for "cooperative federalism."

Evidence chain: GST/NITI/Finance Commission -> Governor/CBI/fiscal disputes -> *Bommai* -> 2025 assent control -> targeted reforms.

Why this earns marks: It addresses changes and measures, supplies current legal control and links Governor reform to the federal trust deficit.

How to improve this answer: Match each reform to one diagnosed trust deficit: fiscal predictability, consultation, assent reasons, floor-test neutrality or statutory Chancellor conflict.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2018 GS-I Q41

Verified neutral demand: Criminal proceedings against a Governor and protection of gubernatorial emoluments.

Provenance: Local routing ledger; older official key unavailable locally. No answer letter is invented.

Doctrinal solution

- [FACT] Article 361 bars institution or continuation of criminal proceedings during the term.
- [FACT] No arrest or imprisonment process may issue during the term.
- [FACT] Article 158 protects emoluments and allowances from diminution during the term.
- [LIMIT] Immunity is temporary/personal; it does not erase liability forever or immunise governmental action from review.

Elimination rule: Reject any statement permitting criminal prosecution during the term or allowing reduction of protected emoluments during that term.

Prelims route 2 - 2019 GS-I Q66

Verified neutral demand: Recommendations concerning the qualities/appointment of an ideal Governor.

Provenance: Local routing ledger; older official key unavailable locally. No answer letter is invented.

Doctrinal solution

- [FACT] The Constitution itself requires citizenship and age 35, not outsider status or CM consultation.
- [ANALYSIS] Sarkaria recommended an eminent person, outsider to the State, detached from local politics and selected after consultation with the CM.
- [ANALYSIS] Punchhi and NCRWC proposed additional appointment/tenure insulation.
- [LIMIT] These are recommendations, not enacted qualifications.

Elimination rule: Distinguish constitutional eligibility from commission criteria; reject options presenting proposals as law.

Prelims route 3 - 2025 GS-I Q54

Verified neutral demand: Governor's discretion and the President's role where a State Bill is reserved. **Provenance:** Official 2025 Set-A key exists locally, but the answer is not recorded in the authoritative Core and is not inferred here.

Doctrinal solution

- [FACT] Reserving a Bill for the President under Article 200 is a constitutionally recognised discretionary field.
- [FACT] Mandatory reservation applies to the High Court-endangering category in the second proviso.
- [FACT] Under Article 201 the President may assent, withhold, or for a non-Money Bill direct return.
- [FACT] The President is not obliged to assent after re-passage of a reserved Bill.

Elimination rule: Reject any claim that reservation is always bound by ordinary advice or that re-passage automatically compels presidential assent.

Prelims route 4 - 2025 GS-I Q59

Verified neutral demand: Governor's immunity compared with immunity for words spoken in a State legislature.

Provenance: Official 2025 Set-A key exists locally, but the answer is not recorded in the authoritative Core and is not inferred here.

Doctrinal solution

- [FACT] Article 361 protects the Governor in specified ways during the term.
- [FACT] Article 194 speech/vote immunity belongs to members of the State legislature.
- [FACT] The Governor is part of the legislature under Article 168 but is not a member of a House.

Elimination rule: Reject any option transferring Article 194 member privilege to the Governor merely because Article 168 includes the office in the legislature.

Original solved Mains practice

M1. "The Governor's discretion is constitutionally necessary but politically dangerous." Examine. (10 marks, 150 words)

Directive fidelity: "Examine" requires the need, the constitutional limits, evidence of danger and a graded verdict.

Model answer

Claim: [FACT] Article 163 preserves limited gubernatorial discretion for hung Assemblies, Bill reservation and constitutional-breakdown reports.

Named evidence: *Shamsher Singh* makes advice the norm. *Nabam Rebia* prevents self-expanded discretion over sessions. *S.R. Bommai* requires floor testing and review of Article 356 material. *Subhash Desai* requires objective material and bars a floor test for intra-party dissent.

Analysis: Discretion restarts responsible government when no ministry clearly commands confidence. It becomes dangerous because Articles 155-156 combine Union appointment with pleasure tenure.

Qualification and verdict: [LIMIT] Not every disputed decision is unconstitutional, and Article 163 is not empty. Yet legitimacy depends on narrow purpose, recorded objective material and rapid transfer of the decisive question to the Assembly. Discretion is therefore a **procedural safety valve, not a competing political mandate**.

Examiner comment: A 10-marker should not list every power. Centre the answer on the default-exception-control structure.

Evidence chain: Article 163 -> *Shamsher Singh* -> *Nabam Rebia* -> *Bommai* -> *Subhash Desai*.

Why this earns marks: It supplies four named cases, explains both necessity and danger, states a qualification and answers the proposition directly.

How to improve this answer: For a 10-marker use advice default, two narrow exceptions, one case and one commission reform; do not catalogue every Governor power.

M2. Explain why the Chief Minister and State Council of Ministers constitute the real executive. (10 marks, 150 words)

Directive fidelity: "Explain why" requires a constitutional mechanism, not merely the labels "real" and "nominal."

Model answer

Claim: [FACT] Although Article 154 vests power in the Governor, Articles 163-164 locate political authority in the CM-led Council responsible to the Assembly.

Named evidence: Other ministers are appointed on CM advice; the CM allocates portfolios, chairs the Council and secures individual exits. Article 164(2) makes the Council stand or fall with Assembly confidence. Article 167 makes the CM the communication and information link. Article 166's name clause does not create personal gubernatorial policy.

Analysis: The ministry draws authority from the Assembly, controls policy and administration, and bears collective accountability. The Governor supplies constitutional form and limited process supervision.

Qualification and verdict: [LIMIT] The Governor is not irrelevant: hung-House appointment, Bill reservation and Article 356 reporting remain sensitive functions. Nevertheless, ordinary government belongs to the CM-Council because power follows responsibility. The State executive is therefore formally gubernatorial but substantively ministerial.

Examiner comment: Connect each power to Assembly responsibility; do not treat "real executive" as a memorised definition.

Evidence chain: Articles 154/163 -> Article 164(2) -> Article 166 -> Article 167.

Why this earns marks: It uses four constitutional provisions to prove, rather than assert, the real-executive conclusion.

How to improve this answer: Retain Articles 163, 164(2) and 167, the Assembly-confidence chain and one qualification on Governor pleasure; cut ceremonial functions first.

M3. "Article 200 creates a constitutional gate, not a gubernatorial pocket veto." Discuss in light of the 2025 assent cases. (15 marks, 250 words)

Directive fidelity: "Discuss" requires Article 200's options, the democratic concern, both dated 2025 controls and a balanced conclusion.

Model answer

Claim: [FACT] Article 200 places the Governor within State law-making to ensure constitutional scrutiny, but its listed choices do not expressly create a power of indefinite non-decision.

Named evidence: A presented Bill may receive assent, withholding, return for reconsideration if it is not a Money Bill, or reservation for the President. Reservation is mandatory where the Bill would so derogate from High Court powers as to endanger its constitutional position. Under Article 201 the President may assent, withhold or direct return of a non-Money Bill; unlike the Article 200 direct-return loop, re-passage does not compel presidential assent.

Current evidence and analysis: In *State of Tamil Nadu v. Governor of Tamil Nadu* (8 April 2025, 2025 INSC 481), the Court prescribed timelines and used deemed assent on the facts, responding to constitutional paralysis. The later five-judge Article 143 opinion (20 November 2025, 2025 INSC 1333) held that courts cannot add rigid timelines or automatic deemed assent to Articles 200-201. Yet prolonged, unexplained and indefinite inaction remains open to limited review and mandamus requiring action.

Qualification: [LIMIT] The later opinion is advisory and non-binding; it did not "overrule" the April judgment. A court may require decision but not choose assent, withholding, return or reservation.

Verdict: Article 200 is a scrutiny gate, not a pocket veto. Federal legitimacy requires constitutional expedition and reasons, while separation of powers forbids judicial invention of a new deemed-assent option.

Examiner comment: Preserve the April-November sequence and the advisory-status qualification.

Evidence chain: Article 200 options -> mandatory HC proviso -> Article 201 distinction -> April 2025 -> November 2025 -> limited mandamus.

Why this earns marks: It uses the exact current legal control, explains both democratic effectiveness and separation-of-powers limits, and avoids the prohibited "overruled" claim.

How to improve this answer: Use an Article 200 decision tree, then contrast the April judgment with the November advisory opinion without saying either created a pocket veto or overruled the other.

M4. Frame a constitutionally proper response to a hung Assembly and a later claim that the ministry has lost confidence. (15 marks, 250 words)

Directive fidelity: The question requires a sequential government-formation and confidence-loss protocol, with cases and limits.

Model answer

Claim: [ANALYSIS] The Governor's role is temporary and procedural: identify a plausible confidence-holder, then let the Legislative Assembly decide who governs.

Appointment stage: Article 164(1) authorises appointment of the CM. With a clear majority, the recognised leader must be invited. In a hung House, the Governor should examine objective support such as a pre-poll alliance, coalition agreement or credible support commitments, appoint the person most likely to command confidence and require a prompt floor test. Sarkaria-style preference guides promote neutrality but are recommendations, not an inflexible legal code.

Later confidence claim: *S.R. Bommai* makes the floor the ordinary forum. Objective events such as withdrawal of coalition support, resignations affecting numbers or a credible rival claim may justify a test. *Subhash Desai* bars reliance on intra-party dissent or factional letters alone and holds that the Governor cannot use a test to decide an internal party dispute. Speaker disqualification and Election Commission symbol proceedings remain separate tracks.

Failure stage: If the ministry loses and resigns, the Governor should explore a viable alternative before dissolution. If it refuses to resign after demonstrated loss, dismissal may follow. *Rameshwar Prasad* warns against pre-emptive dissolution based on anticipated horse-trading.

Qualification and verdict: [LIMIT] Political configurations vary, so rigid invitation arithmetic can mislead. The constant rules are objective material, equal treatment, prompt floor proof and no partisan adjudication. Appointment opens the door; Assembly confidence keeps it open.

Examiner comment: Sequence is essential: invitation -> floor test -> alternative -> dissolution.

Evidence chain: Article 164 -> objective support -> *Bommai* -> *Subhash Desai* -> *Rameshwar Prasad*.

Why this earns marks: It gives an operational protocol, five named anchors, institutional separation and a qualified verdict.

How to improve this answer: Present hung-House invitation and later loss-of-majority as two distinct stages; attach objective material and an early floor test to both.

M5. Does the pleasure doctrine make the Governor and State ministers agents of the appointing authority? Analyse. (15 marks, 250 words)

Directive fidelity: "Analyse" requires separating gubernatorial pleasure from ministerial pleasure and tracing each through parliamentary responsibility.

Model answer

Claim: [FACT] "Pleasure" appears in two different relationships and cannot be read literally as unlimited personal command. Article 156 places the Governor during the President's pleasure; Article 164 places ministers during the Governor's pleasure.

Governor: The five-year term is expressly subject to presidential pleasure. Transfer and reappointment are possible, and no State-legislature removal process exists. [ANALYSIS] This insecurity can create perceived dependence on the Union, particularly in assent, government formation and Article 356 disputes. Sarkaria, Punchhi and NCRWC consequently proposed consultative selection and stronger tenure protection.

Ministers: Article 164's pleasure operates inside responsible government. Other ministers are appointed on CM advice; the CM ordinarily secures an individual minister's removal. The whole Council, however, survives on Legislative Assembly confidence under Article 164(2). A Governor cannot dismiss a majority-holding CM merely by invoking pleasure.

Named judicial evidence: *Shamsher Singh* makes ministerial advice the default. *Bommai* and *Subhash Desai* shift confidence questions to objective material and the House floor.

Qualification: [FACT] *B.P. Singhal* preserves presidential pleasure but rejects capricious, unreasonable or mala fide removal; routine disclosure of reasons is not mandatory, though a prima facie arbitrariness challenge requires the Union to justify its action.

Verdict: Pleasure creates dependence, but not agency in the private-law sense. For ministers it is democratically mediated by the CM and Assembly; for Governors its structural Union tilt justifies tenure and appointment reform.

Examiner comment: Do not merge Article 156 and Article 164 or say the Governor personally controls every minister.

Evidence chain: Article 156 -> Article 164(1)/(2) -> *Shamsher Singh* -> *Bommai/Subhash Desai* -> commissions.

Why this earns marks: It distinguishes two doctrines, explains their mechanisms and uses the source-bound case caution.

How to improve this answer: Distinguish Governor pleasure under Article 156 from ministerial pleasure mediated by CM advice and Assembly confidence; add B.P. Singhal to bound the former.

M6. Compare Articles 72 and 161 and assess the constitutional limits on the Governor's clemency power. (15 marks, 250 words)

Directive fidelity: "Compare and assess" requires common parameters, cases, the death/court-martial distinctions and review.

Model answer

Claim: [FACT] Articles 72 and 161 create parallel humanitarian powers, but presidential jurisdiction is broader.

Comparison: The President may grant pardon, reprieve, respite, remission or commutation in court-martial cases, Union-field offences and every death sentence. The Governor acts for offences against laws within State executive power. The Governor has no court-martial jurisdiction and cannot pardon a death sentence, though suspension, remission or commutation of that sentence is possible.

Named evidence: *Maru Ram* establishes that clemency is exercised on ministerial advice, defeating the notion of personal mercy. *Kehar Singh*, in the presidential context, shows that the executive may reconsider merits without becoming an appellate court. *Epuru Sudhakar* permits limited review for mala fides, arbitrariness, non-application of mind and relevant/irrelevant-material defects.

Analysis: Clemency corrects exceptional harshness, considers public policy and supplies a constitutional safety valve beyond strict judicial sentencing. Advice preserves democratic responsibility; review preserves legality.

Qualification: [LIMIT] Courts do not ordinarily substitute their preferred mercy outcome, and no automatic rule follows from delay in every category. Article 161 also cannot reach an offence outside the State executive field merely because the prisoner is held in that State.

Verdict: The Governor's power is substantial but jurisdictionally narrower and institutionally controlled: humanitarian discretion operates through the State Council, within subject-matter limits and under limited review.

Examiner comment: The death-sentence formula must be exact: no pardon, but suspension/remission/commutation.

Evidence chain: Article 72 field -> Article 161 field -> *Maru Ram* -> *Kehar Singh* -> *Epuru Sudhakar*.

Why this earns marks: It compares on identical parameters, uses three cases and preserves both jurisdiction and review qualifications.

How to improve this answer: Use an identical parameter table-field of offence, death sentence, court martial, advice and review-and avoid saying Article 161 lacks every power over death sentences.

M7. "The Governor's dual role is a bridge in constitutional theory but a fault line in federal practice." Critically examine and suggest reforms. (20 marks, 250 words)

Directive fidelity: "Critically examine and suggest" requires design, benefits, failures, counter-evidence and reforms linked to diagnosed defects.

Model answer

Claim: [ANALYSIS] The Governor links the Union-weighted federation to responsible State government: Article 155 supplies Union appointment, while Articles 154 and 163 make the office the State head. The same duality can facilitate coordination or generate divided-loyalty distrust.

Bridge function: The Governor ensures constitutional continuity, appoints a CM where no majority is clear, completes legislation, reserves sensitive Bills and reports exceptional breakdown. Article 167 information can warn without displacing elected policy. A statutory Chancellor role may support university oversight where State law provides.

Fault-line evidence: Article 156 pleasure tenure weakens perceived independence. Assent delay can suspend State legislation; factional formation disputes can alter government; an Article 356 report can trigger central takeover; Chancellor powers can create a parallel statutory executive. *Rameshwar Prasad* exposed speculative dissolution, while *Subhash Desai* rejected a floor test based on factional dissent.

Counter-controls: *Shamsher Singh* makes advice the norm; *Bommai* constitutionalises review and floor testing; the November 2025 assent opinion allows limited mandamus against prolonged unexplained inaction while rejecting deemed assent.

Reforms: Use consultative appointment; protect tenure or require compelling reasons; publish neutral hung-House criteria; record floor-test material; issue reasoned, trackable Bill decisions without invented deadlines; use Article 356 only after warning/floor process; and define Chancellor powers in State statutes. Sarkaria, Punchhi and NCRWC support this direction.

Qualification and verdict: [LIMIT] Recommendations are not law, and over-codification may sacrifice flexibility. The office should be retained as a **neutral process guardian**, but its Union dependence must be offset by transparent reasons, tenure insulation and House-centred decision-making.

Examiner comment: Reform must map onto appointment, tenure, formation, assent, emergency and statutory-role defects.

Evidence chain: Articles 155/156/163/167 -> Article 200/356 -> *Rameshwar Prasad/Subhash Desai* -> *Bommai* -> 2025 opinion -> commissions.

Why this earns marks: It provides eight evidence units, a genuine counter-case, targeted reforms and a graded institutional verdict.

How to improve this answer: Define the bridge and fault-line functions separately, attach a case to each misuse channel and rank reforms by appointment, tenure, reasons and House-centred testing.

M8. Evaluate the ordinance power of the Governor as a test of executive necessity versus legislative supremacy. (20 marks, 250 words)

Directive fidelity: "Evaluate" requires criteria, legitimate uses, abuse mechanisms, case-law controls and a reasoned balance.

Model answer

Claim: [FACT] Article 213 is a constitutionally valid emergency bridge, not an alternative legislative chamber. Its legitimacy depends on genuine temporal necessity and prompt return to representative scrutiny.

Constitutional design: The Governor may promulgate when the session condition permits and immediate action is considered necessary. In a bicameral State, the power is unavailable when both Houses are in session. An ordinance has Act-like force but must remain within State legislative competence, comply with Fundamental Rights and obtain presidential instructions in specified sanction/reservation situations. It must be laid and ends six weeks after reassembly, earlier disapproval or withdrawal.

Necessity case: Public emergencies, urgent fiscal/legal gaps or immediate implementation needs may arise between sittings. Temporary law prevents administrative paralysis.

Supremacy danger: The executive can avoid debate, committee scrutiny and an uncertain Assembly majority. Serial re-promulgation converts a short bridge into executive legislation.

Named evidence: *D.C. Wadhwa* called routine re-promulgation a fraud on the Constitution. *Krishna Kumar Singh* (seven judges, 5:2) made laying mandatory, reaffirmed review, protected legislative supremacy and rejected automatic survival of every lapsed ordinance's effects.

Reform and qualification: Require publicly stated urgency, immediate laying, committee scrutiny and explanation of any fresh ordinance. [LIMIT] Courts should review competence, mala fides and constitutional abuse but not abolish the power or substitute their policy judgement.

Verdict: Article 213 is legitimate when it bridges time; it is unconstitutional in spirit and law when repetition bypasses representation. Necessity authorises the first step, but legislative accountability must control the destination.

Examiner comment: Include session condition, competence, presidential instructions, laying, six weeks and both cases.

Evidence chain: Article 213 preconditions -> Act-like force/competence -> laying/six weeks -> *Wadhwa* -> *Krishna Kumar Singh* -> urgency-and-scrutiny reform.

Why this earns marks: It evaluates against explicit criteria, presents both necessity and abuse, uses more than six precise anchors and gives proportionate reform.

How to improve this answer: Build the answer around necessity, session condition, laying, six-week expiry and re-promulgation; preserve legislative supremacy and avoid treating every ordinance as suspect.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A1. Formal vesting, real authority and constitutional trusteeship

Visual 49 - Three levels of gubernatorial action

Level	Nature	Example	Standard
Formal	Gives legal form to advised decision	Appointment of ministers on CM advice	Follow responsible government
Facilitative	Maintains constitutional process	Seeking information under Article 167	Neutrality and relevance
Discretion-sensitive	Acts where ordinary advice cannot settle threshold	Hung House, reservation, 356 report	Objective material and narrow purpose

- [ANALYSIS] The Governor is best described as a **constitutional trustee of process**, not a rival policy-maker.
- [ANALYSIS] Trusteeship requires fidelity to institutions: Assembly for confidence, political party for internal leadership, Speaker for Tenth Schedule adjudication, courts for legality and elected ministry for policy.

A2. The political-information problem

Visual 50 - Why mistakes occur

Private political claims
 +
 Rapidly changing House numbers
 +
 Speaker/defection proceedings
 +
 Union-State party competition
 |
 v
 Governor faces information asymmetry
 |
 v
 Constitutional cure:
 objective material + transparent reasons + prompt floor test

- [ANALYSIS] A Governor often receives asymmetric claims from parties that benefit from a particular timing.
- [ANALYSIS] The safest institutional response is to minimise private factual adjudication and move the decisive question to the public Assembly floor.
- [LIMIT] A floor test cannot cure every illegality. It does not decide the validity of a whip, disqualification petition or party constitution.

A3. Assent as a separation-of-powers problem

- [ANALYSIS] State law-making requires interaction among legislature, responsible executive, Governor and sometimes President. Delay lets an unelected office block an elected legislature without openly accepting responsibility for assent, withholding or reservation.
- [ANALYSIS] The April 2025 judgment prioritised effective constitutional government; the November advisory opinion prioritised textual silence and institutional non-substitution.
- [LIMIT] The exam-worthy synthesis is not "judiciary versus Governor." It is that courts may police prolonged non-performance while not creating a new constitutional option or choosing the result.

Visual 51 - Competing values

Value	What it supports	What restrains it
Democratic law-making	Timely decision on passed Bills	Constitutional reservation/scrutiny
Federal autonomy	Respect for State legislature	Article 200/201 central gate
Separation of powers	No judicially invented deemed assent	Limited mandamus against inaction

Value	What it supports	What restrains it
Rule of law	Reasons and review	Immunity of person, not action

A4. Anti-defection and formation crises

- [FACT] *Subhash Desai* held that the whip/leader recognised for Tenth Schedule purposes must be appointed by the **political party**, not merely a breakaway legislature-party faction.
- [FACT] It also allowed Election Commission symbol proceedings and Speaker disqualification proceedings to run on distinct tracks.
- [LIMIT] These holdings do not authorise the Governor to decide the real political party.
- [ANALYSIS] Government formation, floor testing, disqualification and symbol adjudication overlap politically but remain institutionally separate.

Visual 52 - Four-track firewall

Governor -> Does ministry retain Assembly confidence?
 Speaker -> Are members disqualified under Tenth Schedule?
 ECI -> Which group receives symbol recognition under election law?
 Court -> Were constitutional/statutory limits breached?

No track should usurp another.

A5. Federal reform: legal rules versus conventions

- [ANALYSIS] Some defects require legal change: tenure/removal architecture, statutory Chancellor design or procedural reporting.
- [ANALYSIS] Others need conventions: consultation, public reasons, caretaker restraint and non-partisan communication.
- [LIMIT] Codification can create rigidity and litigation; pure convention can be ignored. A mixed model is preferable.

Visual 53 - Reform instrument choice

Defect	Best primary instrument	Reason
Appointment neutrality	Constitutional convention/statutory consultation, possibly amendment	Broadens legitimacy
Tenure insecurity	Constitutional reform if fixed protection desired	Article 156 now controls
Hung-House procedure	Published convention + judicial standards	Needs flexibility
Assent tracking	Transparent procedure/reasons	Improves accountability without deemed assent
Chancellor conflict	State university statute	Role is statutory
Article 356 abuse	Existing <i>Bommai</i> law + political compliance	Legal safeguards already substantial

A6. Source and factual-control note

- Authoritative owner: Polity/basic/Governor-and-CM.md.
- Optional depth: Polity/advanced/19_Governor-CM-State-Council.md.
- Cross-links used: Polity 12-17; basic/Anti-Defection-Law.md; basic/State-Legislature.md; basic/High-Court.md.
- Constitutional anchors: Articles 153-176, 200-201, 213, 233, 243-I, 243K, 316, 356 and 361.
- Judicial anchors: *Shamsher Singh*; *S.R. Bommai*; *Rameshwar Prasad*; *Nabam Rebia*; *Subhash Desai*; *D.C. Wadhwa*; *Krishna Kumar Singh*; *B.R. Kapur*; *Maru Ram*; *Epuru Sudhakar*.
- [LIMIT] Commission recommendations are proposals, not law.
- [LIMIT] No live office-holder list is maintained.
- [LIMIT] Any future answer must recheck assent doctrine after 28 August 2026.

CONSOLIDATED REGISTER NOTES

Constitutional operating chain

Assembly confidence

- > Governor appoints CM: Article 164
- > CM forms Council
- > Council aids/advises Governor: Article 163
- > action expressed in Governor's name: Article 166
- > CM informs Governor: Article 167
- > Council remains responsible to Assembly: Article 164(2)

- Governor = formal constitutional head; CM-Council = responsible political executive.
- Article 154 formal vesting must be read with Articles 163-164 responsibility.
- Advice is the norm; discretion is a narrow constitutional exception.
- "Nominal" means no independent ordinary policy mandate, not ceremonial uselessness.

Articles 153-167 rapid map

Article	Recall
153	Governor for each State; common Governor permitted
154	State executive power vested in Governor
155	Presidential appointment by warrant
156	Pleasure + five years + resignation + continuity
157	Citizen; 35
158	Conditions, residence, emoluments, no diminution
159	Oath by HC Chief Justice/senior judge
160	President covers unprovided contingency
161	State clemency, narrower than Article 72
162	Extent of State executive power
163	Advice with narrow discretion
164	CM/ministers, responsibility, cap, oaths, six months
165	Advocate General
166	Governor's name, authentication, business rules
167	Communicate, furnish, collectivise

Governor appointment and office conditions

- Appointed by President, not elected.
- Qualification: Indian citizen + completed 35 years.
- No Parliament/State-legislature membership; seat deemed vacated on assuming office.
- No other office of profit.
- Official residence without rent; statutory emoluments/allowances.
- Emoluments and allowances cannot be diminished during term.
- Common Governor: President determines allocation of emoluments among States.
- Oath: preserve, protect and defend Constitution/law and serve State people; administered under Article 159.
- Outsider/non-partisan/CM consultation = commission criteria, not constitutional qualification.

Common Governor and tenure

- Same person may govern two or more States; offices/ministries remain separate.

- Five-year term is subject to President's pleasure.
- No fixed enforceable five-year right.
- Resignation addressed to President.
- Continues until successor enters office.
- Transfer and reappointment are constitutionally possible.
- No current State-legislature impeachment process.
- *B.P. Singhal* (2010): no fixed enforceable tenure, but no capricious, unreasonable or mala fide removal.

Article 361 immunity

Protection	Exact point
Official non-answerability	Governor not personally answerable to court for official exercise
Criminal process	Cannot be instituted or continued during term
Arrest/imprisonment	No process during term
Personal civil claim	Two months' prior written notice
Review survives	Governmental action/material may still be reviewed

- Article 361 is not Article 194.
- Governor is part of legislature under Article 168 but not a House member.
- 2018 Q41 route: criminal-process immunity + no diminution of emoluments/allowances.
- 2025 Q59 route: office immunity versus member speech privilege.

Executive powers

- Appoints CM; other ministers on CM advice.
- Appoints Advocate General.
- Constitutionally specified role in SEC, SPSC and district-judge appointments.
- Seeks information through Article 167.
- Makes business rules in constitutional form under Article 166.
- May report under Article 356.
- Does not appoint High Court judges.
- University Chancellor role, if any, comes from State statute, not Constitution.

Legislative powers

- Article 168: Governor + House(s) constitute State legislature.
- Article 171: nominates one-sixth of Legislative Council, never Assembly.
- Nominated fields: literature, science, art, cooperative movement, social service.
- Article 174: summon, prorogue, dissolve Assembly; six-month session gap ceiling.
- Article 175: addresses/messages.
- Article 176: special address after general election and first session each year.
- Article 200: assent / withhold / return non-Money Bill / reserve.
- Article 213: ordinance.
- *Nabam Rebia*: session/message power normally advice-bound.

Financial powers

- Causes annual financial statement to be laid: Article 202.
- Recommendation for demands for grants: Article 203(3).
- Recommendation for Money/specified financial Bills: Article 207.
- State Contingency Fund at disposal subject to law: Article 267(2).

- Constitutes State Finance Commission: Article 243-I.
- Formal financial gate does not equal personal budget power.

Judicial and clemency powers

- Article 161 field = offences under laws within State executive competence.
- No court-martial clemency.
- Death sentence: cannot pardon; may suspend, remit or commute.
- *Maru Ram*: ministerial advice.
- *Epuru Sudhakar*: limited review for mala fides, arbitrariness, non-application of mind and material defects.
- District judges: Governor + High Court consultation under Article 233.

Article 163 discretion

Advice is default

- > discretion only where Constitution expressly/necessarily permits
- > objective material and proper purpose
- > no rival policy mandate
- Express/anchored examples: Bill reservation, Article 356 report, special constitutional responsibilities.
- Situational examples: hung-House CM appointment; confidence test; response after demonstrated majority loss.
- Not discretion: routine policy, minister selection against CM, party-faction adjudication, partisan session scheduling.
- Article 163(2) finality language does not create unlimited discretion.
- Article 163(3) protects the advice from inquiry, not every resulting action.

Case-law proposition bank

Case	Proposition	Qualification
<i>Shamsher Singh</i> (1974)	Constitutional head ordinarily acts on advice	Narrow exceptions remain
<i>S.R. Bommai</i> (1994)	Article 356 review; floor test; federalism Basic Structure	Full emergency doctrine cross-owned
<i>Rameshwar Prasad</i> (2006)	Anticipated horse-trading cannot justify mala fide dissolution	Objective facts still matter
<i>Nabam Rebia</i> (2016)	Article 174/175 ordinarily advice-bound; narrow discretion	Speaker-removal question later referred
<i>Subhash Desai</i> (2023)	Objective material for floor test; no intra-party arbitration	No restoration because CM resigned
<i>D.C. Wadhwa</i> (1987)	Serial re-promulgation = fraud on Constitution	Ordinance power itself valid
<i>Krishna Kumar Singh</i> (2017)	Laying mandatory; review; no automatic enduring effects	Seven judges, 5:2
<i>B.R. Kapur</i> (2001)	Six-month non-member rule cannot cure disqualification	Use for eligibility caution

Hung Assembly and CM appointment

Clear majority -> appoint leader

Hung House -> assess objective support

- > provisional invitation
- > prompt Assembly floor test

- Article 164 appoints CM but gives no exhaustive invitation order.
- Commission preference lists guide neutrality; they are not immutable law.
- Appointment does not itself prove confidence.
- CM may be from either House in bicameral State.
- Non-member CM/minster: six consecutive months under Article 164(4).

- Temporary non-membership is not a cure for disqualification.

Floor-test doctrine

- *Bommai*: House floor is ordinary majority forum.
- *Subhash Desai*: objective material required.
- Intra-party dissent/faction letters alone are insufficient.
- Floor test cannot decide party leadership, whip validity or disqualification.
- Speaker, ECI, Governor and courts have distinct tracks.
- Fair test = objective trigger + promptness + neutral procedure + House decision.

Dismissal, dissolution and caretaker

- Majority-holding CM cannot be dismissed under a literal pleasure theory.
- Disputed majority -> floor test.
- Demonstrated loss + refusal to resign -> dismissal may follow.
- After resignation/loss, explore viable alternative before dissolution.
- No viable alternative -> election/dissolution route.
- *Rameshwar Prasad*: apprehension cannot substitute for House process.
- Caretaker government is convention-based, not a complete constitutional code.
- Caretaker: continue essentials; avoid avoidable irreversible decisions unless necessary.

Article 356 Governor route

- Trigger = constitutional breakdown, not bad administration or policy conflict.
- President may act on Governor report **or otherwise**.
- Governor report is relevant material, not final verdict.
- Majority disputes ordinarily require floor test.
- *Bommai*: judicial review, relevant material, federalism.
- *Rameshwar Prasad*: no speculative pre-emptive dissolution.
- Sarkaria/Punchhi: warning, last resort, speaking/objective report - proposals/norms.

Article 200 exact card

Option	Rule
Assent	Bill becomes law
Withhold	Bill does not become law
Return	Non-Money Bill only
Reserve	President decides under Article 201

- Returned and repassed direct Article 200 Bill: textual bar on withholding.
- Mandatory reservation: Bill derogates from HC powers so as to endanger HC constitutional position.
- No general "pocket veto" in the text.
- Inaction creates democratic paralysis and may attract limited review.

Article 201 exact card

- President: assent or withhold.
- Non-Money Bill: may direct return through Governor.
- Re-passage does **not** compel President to assent.
- Do not import Article 200 direct-return obligation into Article 201.
- Prior presidential sanction and reservation are distinct.

2025 assent doctrine control

Date	Authority	Safe proposition
8 Apr 2025	<i>State of Tamil Nadu v. Governor</i> , 2025 INSC 481	Timelines prescribed; deemed assent used on facts
20 Nov 2025	Article 143 opinion, 2025 INSC 1333	No rigid court-made timelines; no automatic deemed assent; prolonged unexplained indefinite inaction reviewable

- November opinion = later controlling position narrowly.
- It is advisory and non-binding.
- It did not "overrule" April judgment.
- Limited mandamus may require action without dictating assent/withhold/return/reserve.
- Never write a fixed three-month rule or automatic deemed assent.

Article 213 ordinance card

Session condition + immediate necessity

- > ordinance with Act-like force
- > within State competence and constitutional limits
- > presidential instructions where required
- > mandatory laying
- > six weeks after reassembly / earlier disapproval / withdrawal
- Bicameral State: unavailable when both Houses are in session.
- Six weeks runs from later reassembly date if Houses reassemble differently.
- *Wadhwa*: routine re-promulgation fraud.
- *Krishna Kumar Singh*: laying mandatory; review; legislative supremacy; no automatic enduring effects.
- Valid purpose = urgent bridge.
- Invalid pattern = serial bypass.

Chief Minister powers

- Head of Council and real executive.
- Recommends ministers; allocates/reshuffles portfolios; chairs Cabinet/Council.
- CM resignation/death ends existing CM-headed ministry.
- Leads Assembly majority and legislative programme.
- Advises on sessions/dissolution subject to constitutional conditions.
- Article 167 channel to Governor.
- Practical strength varies with majority, coalition, party and institutional constraints.

Article 167 recall

1. **Communicate** Council decisions on administration and legislative proposals.
 2. **Furnish** information sought by Governor.
 3. **Collectivise** an individual minister's unconsidered decision if Governor requires Council consideration.
- Information power is not policy-substitution power.

State Council of Ministers

- Article 163: aid/advice with narrow discretion carve-out.
- Article 164: CM appointed Governor; others on CM advice.
- Oaths of office and secrecy by Governor.
- Collective responsibility only to Legislative Assembly.
- Individual minister pleasure operates through CM-led practice.
- One minister's exit does not end whole ministry.
- CM's resignation/death ends existing ministry.
- Ranks: Cabinet; Minister of State independent/attached; Deputy Minister if used.

- Ranks are conventional, not an exhaustive constitutional taxonomy.

91st Amendment and Tribal Welfare Minister

Rule	Exact fact
Maximum	15% of total Assembly membership
Minimum	12
Count	Includes CM and all ministers
Defector bar	Article 164(1B), specified Tenth Schedule disqualification period
Tribal Welfare Minister	Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha

- Base is Assembly, not both Houses.
- Bihar excluded from current four-State list after 94th Amendment.
- Cap curbs patronage; defector bar blocks office reward.

Advocate General and business rules

- Article 165: appointed by Governor; qualified to be HC judge.
- Advises State; performs legal duties assigned.
- Holds office during Governor's pleasure; remuneration determined by Governor.
- Article 166: action in Governor's name; authentication; business rules.
- Governor's name = constitutional form, not proof of personal decision.

Chancellor role

- Not constitutional.
- Exists only under relevant State university statute.
- State statutes vary and may redesign the role subject to constitutional limits.
- Never say all Governors are ex officio Chancellors by Article 153.
- Keep university appointment litigation separate from Article 163 unless the statute raises that issue.

Dual-role debate

Bridge case

- continuity;
- neutral facilitation in genuine hung House;
- constitutional warning/information;
- federal scrutiny of sensitive State Bills.

Fault-line case

- Union appointment;
- pleasure tenure;
- assent delay;
- partisan formation/floor-test risk;
- Article 356 report;
- statutory Chancellor conflict.

Controls

- *Shamsher Singh*: advice.
- *Bommai*: review/floor.
- *Rameshwar Prasad*: no apprehension-based dissolution.
- *Subhash Desai*: objective material/no faction arbitration.
- 2025 opinion: limited review of prolonged assent inaction.

Reform commissions - proposals, not law

- **Sarkaria:** eminent outsider, non-partisan, CM consultation, compelling-reason removal, Article 356 last resort.
- **NCRWC/Venkatachaliah:** plural appointment committee; tenure disturbance only rarely.
- **Punchhi:** fixed tenure and State-legislature-linked removal/impeachment-type proposal; clearer discretion norms.
- Shared reform logic: neutral appointment + tenure insulation + objective crisis procedure.
- Constitutional reality remains Articles 155-156.

Prelims routed-demand card

1. **2018 Q41:** no criminal proceedings during term; protected emoluments/allowances not diminished.
 2. **2019 Q66:** ideal-Governor commission criteria are proposals, distinct from Article 157 qualifications.
 3. **2025 Q54:** reservation is discretionary; President not compelled after re-passage under Article 201.
 4. **2025 Q59:** Article 361 office immunity is not Article 194 member speech immunity.
- No answer letters are invented where authoritative local recording is absent.

Mains answer spines

Discretion

Article 163 -> Shamsher default -> express/situational fields
-> Bommai/Nabam/Subhash controls -> neutral process verdict

Assent

Article 200 options -> HC mandatory reservation -> Article 201
-> April/November 2025 -> no pocket veto, no deemed assent

Formation

Article 164 -> objective support -> floor test
-> alternative ministry -> dissolution last

Pleasure/reform

Articles 155-156 -> structural Union tilt
-> commission cures -> proposals-not-law

Ordinance

Article 213 urgency -> laying/six weeks
-> Wadhwa -> Krishna Kumar Singh -> bridge-not-bypass

CM/CoM

Articles 163-164 -> Assembly responsibility
-> Article 167 -> 91st Amendment -> real executive

Final rapid-fire traps

1. Governor is appointed, not elected.
2. Minimum age is 35.
3. Five years is subject to President's pleasure.
4. One person may govern multiple States.
5. Common Governor does not merge States.
6. Governor nominates one-sixth of Council, never Assembly.
7. Chancellor role is statutory, not constitutional.
8. Advice is not textually identical to Article 74, but discretion remains narrow.
9. Floor test needs objective material.
10. Floor test cannot settle intra-party dispute.
11. *Subhash Desai* gave no restoration because CM resigned.
12. *Nabam Rebia* Speaker-removal issue is referred/unresolved in the Core.
13. Article 200 return is only for non-Money Bill.

14. Mandatory reservation protects High Court position.
15. Article 201 does not compel presidential assent after re-passage.
16. No rigid court-made assent clock after November 2025 opinion.
17. No automatic deemed assent.
18. Advisory opinion did not "overrule" April 2025 judgment.
19. Prolonged unexplained indefinite inaction remains reviewable.
20. Article 213 ordinances must be laid.
21. Serial re-promulgation is unconstitutional.
22. Governor cannot pardon death sentence but may suspend/remit/commute.
23. Governor has no court-martial clemency.
24. CM non-member window is six consecutive months.
25. Six-month rule cannot cure disqualification.
26. Council responsible only to Assembly.
27. State ministry cap = 15% of Assembly, minimum 12.
28. CM is included in minister count.
29. Defector office bar is separate from cap.
30. Tribal Welfare Minister States = Chhattisgarh, Jharkhand, MP, Odisha.
31. Article 166 name clause does not mean personal gubernatorial decision.
32. Article 167 = communicate, furnish, collectivise.
33. Article 356 may rest on report or otherwise.
34. Governor report is reviewable material, not final verdict.
35. Commission recommendations are proposals, not law.
36. Avoid live office-holder lists in an institutional answer.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

High-yield use: Follow the panels as one topic-specific conceptual atlas: root question, classifications, processes or arguments, comparisons, objections and a final answer-writing spine. This text-native master is separate from both graphical flowchart artifacts.

ASCII MASTER FLOW - PANEL 1/12: Responsible State executive: legal form and democratic command

ARTICLES 153-167

People -> Legislative Assembly -> confidence -> CM + Council -> real executive

Governor -> constitutional State head -> formal acts and continuity

ARTICLE MAP

153 office | 154 power | 155 appointment | 156 pleasure | 157-159 conditions/oath

161 clemency | 163 advice/discretion | 164 ministry | 165 AG | 166 business | 167 CM duties

CORE RULE

Union appointment creates a federal link, not authority to govern as a Central party agent.

ASCII MASTER FLOW - PANEL 2/12: Appointment, conditions, immunity and pleasure tenure

ENTRY: President appoints by warrant -> citizen + 35 -> Article 159 oath
CONDITIONS: no legislative seat or other office of profit; emoluments protected.
COMMON GOVERNOR: Article 153 proviso allows one person for multiple States.

ARTICLE 156

five-year outer term + President pleasure + resignation + holdover until successor.
B.P. Singhal (2010): no arbitrary, capricious, unreasonable or mala fide removal;
no guaranteed five-year lease and no routine duty to disclose reasons.

ARTICLE 361: personal temporary immunity; underlying government action remains reviewable.

ASCII MASTER FLOW - PANEL 3/12: Complete power classification and source control

EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.
LEGISLATIVE: 168, 171, 174-176, 200 and 213.
FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC.
CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.
SPECIAL: Article 356 report; constitutionally specified responsibilities.
STATUTORY: university Chancellor only where State law provides.

TRAPS: Governor does not appoint HC judges or nominate Assembly members.

ASCII MASTER FLOW - PANEL 4/12: Aid and advice, discretion and special responsibilities

DEFAULT -> Shamsher Singh (1974): CM-led Council advice controls.
EXCEPTION -> express text or necessary implication; discretion remains purpose-bound.

BOUNDED FIELDS

hung-House appointment | objective floor-test doubt | Article 200 reservation
Article 356 report | UT additional charge | constitutionally specified responsibilities.

SPECIAL TEXTS

Article 371A(1)(b): Nagaland law and order | 371H(a): Arunachal law and order
individual judgment after consulting Council; Sixth Schedule assigns specified functions.
LIMIT: exceptional State texts do not create general discretion for every Governor.

ASCII MASTER FLOW - PANEL 5/12: Case-law ladder: from advice to objective material

Shamsher Singh (1974) -> constitutional head; advice is norm
S.R. Bommai (1994) -> Article 356 review; House floor ordinarily tests majority
Rameshwar Prasad (2006) -> speculative horse-trading cannot justify dissolution
B.P. Singhal (2010) -> pleasure survives; arbitrary removal does not
Nabam Rebia (2016) -> Articles 174-175 normally advice-bound
Subhash Desai (2023) -> objective material; no intra-party arbitration by floor test

CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

ASCII MASTER FLOW - PANEL 6/12: Government formation, floor test, dismissal and dissolution

CLEAR MAJORITY -> appoint recognised leader -> ordinary responsible government.
HUNG HOUSE -> invite credible confidence claimant -> early floor test -> no secret count.
LATER DOUBT -> objective material -> prompt floor test in Assembly.

AFTER TEST

confidence retained -> ministry continues
confidence lost -> resignation/dismissal -> test alternative -> dissolution only if needed.
CARETAKER -> continuity with restraint, not a fresh policy mandate.

Subhash Desai (2023): factional dissent alone insufficient.
Rameshwar Prasad (2006): anticipated misconduct cannot replace House process.

ASCII MASTER FLOW - PANEL 7/12: Article 356 report and the federal firewall

GOVERNOR'S REASONED REPORT OR OTHER MATERIAL

↓

∨

PRESIDENTIAL PROCLAMATION -> parliamentary approval -> temporary consequences

↓

∨

JUDICIAL REVIEW UNDER S.R. BOMMAI (1994)

relevance | mala fides | constitutional purpose | possible restoration

FLOOR-TEST PRIORITY

A majority dispute ordinarily belongs in the House, not in Raj Bhavan's assessment.
TRAP: Governor recommends/reports; the Governor does not proclaim President's Rule.

ASCII MASTER FLOW - PANEL 8/12: Articles 200-201 and the 2025 assent control

ARTICLE 200

assent | withhold | return non-Money Bill once | reserve for President
mandatory reservation: Bill endangers High Court constitutional powers.
After repassage Governor cannot return again; exact remaining route is text-specific.

ARTICLE 201

President: assent | withhold | direct return of non-Money Bill through Governor
repassage does not compel presidential assent.

2025 CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025): facts-specific timelines/deemed assent
In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines
or automatic deemed assent; prolonged unexplained inaction remains reviewable.

ASCII MASTER FLOW - PANEL 9/12: Ordinance power and clemency comparison

ARTICLE 213

required House(s) not in session + immediate necessity -> ordinance with Act-like force
-> must be laid -> expires six weeks after reassembly unless approved earlier.
D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.
Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.

ARTICLE 161 V ARTICLE 72

Governor: State-field offences; no court-martial limb; cannot pardon death sentence
but may suspend, remit or commute it. President has wider text.
Both ordinarily act on advice and remain reviewable for recognised defects.

ASCII MASTER FLOW - PANEL 10/12: Chief Minister, Article 167 and State Council

GOVERNOR APPOINTS CM -> CM PROVES ASSEMBLY CONFIDENCE

CM selects ministers -> allocates portfolios -> coordinates policy -> advises Governor.

ARTICLE 167 -> communicate Council decisions, furnish information, collectivise decisions.

COUNCIL UNDER ARTICLES 163-164

appoint ministers on CM advice | collective responsibility to Assembly

individual pleasure is mediated by CM advice and confidence | non-member: maximum six months.

91ST AMENDMENT

ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B).

ASCII MASTER FLOW - PANEL 11/12: Tribal minister, Advocate General, business and comparison

TRIBAL WELFARE MINISTER

required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.

ARTICLE 165 -> Advocate General: HC-judge qualification; advises State government.

ARTICLE 166 -> authentication and business-allocation rules; not personal Governor policy.

PRESIDENT v GOVERNOR

both constitutional heads | Article 74 differs textually from 163

Article 72 wider than 161 | Governor reserves State Bills under 200

Governor has State-specific special responsibilities; neither difference creates general discretion.

CHANCELLOR: statute-specific, not inherent constitutional office.

ASCII MASTER FLOW - PANEL 12/12: Federal neutrality, reforms, PYQs and answer synthesis

FAULT LINE

Union appointment + pleasure tenure + State-facing formation/assent/356 powers.

BRIDGE

constitutional continuity, neutral information, lawful transition and emergency warning.

REFORM ROUTE

Sarkaria: eminent outsider, detached politics, CM consultation

NCRWC/Punchhi: transparent selection, tenure restraint, reasoned action, House-centred tests

All are proposals unless enacted.

PRELIMS: elected? NO | guaranteed five years? NO | general discretion? NO

Money Bill return? NO | Chancellor constitutional? NO | Article 361 = State immunity? NO.

MAINS SPINE

text -> advice default -> exceptional trigger -> case + year -> federal risk

-> matched reform -> neutral constitutional-head conclusion.